THE WORKS OF DEFENCE ACT, 1903

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[1]THE WORKS OF DEFENCE ACT, 1903

[1]ACT No. VII OF 1903

[20th March, 1903]

An Act to provide for imposing restrictions upon the use and enjoyment of land in the vicinity of works of defence in order that such land may be kept free from buildings an other obstructions, and for determining the amount of compensation to be made on account of such imposition.

WHEREAS it is expedient to provide for imposing restrictions upon the use and enjoyment of land in the vicinity of works of defence in order that such land may be kept free from buildings and other obstructions, and for determining the amount of compensation to be made on account of such imposition ; It is hereby enacted as follows:-

PART I

PRELIMINARY

1 Short title and extent.— (1) This Act may be called the [2]*, 1903; and

[3][(2) It extends to the whole of Pakistan.

2. Definitions. In this Act, unless there is something repugnant in the subject or context,-

(a) the expression "land" includes benefits to arise out of land, and things attached to the earth or permanently fastened to anything attached to the earth:

(b) the expression "person interested" includes all persons claiming an interest in compensation to be made on account of the imposition of restrictions upon the use and enjoyment of land under this Act ; and a person shall be deemed to be interested in land if he is interested in an easement affecting the land:

[4][[5](c) the expression "Division" means one of the Divisions or Groups into which Pakistan is, for military, naval or air force purposes for the time being divided ; it includes a Brigade area, a sub-Area which does not form part of any Division, a naval station, port, dockyard, or establishment ; or an air force Headquarters which does not form part of any air force Group, and any area which the [4][Federal Government] may, by notification in the official Gazette, declare to be a Division for all or any of the purposes of this Act :]

[1]For Statement of Objects and Reasons, *see* Gazette of India, 1902, Pt. V, p. 84; for Report of the Select Committee, *see ibid*., 1903, p.105; for Proceedings in Council, *see ibid*., 1902, Pt. VI. p. 175; *ibid*., 1903, pp. 14 and 50.
It has been extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953) as amended.
It has also been extended to the Khairpur State, *see* G. G. O. 5 of 1953, as amended by G. G. O. 24 of 1953.
The Act has also been extended to the State of Bahawalpur *see* G. G. O. 11 of 1953, as amended.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ; and applied in the Federated Areas of Baluchitan, *see* Gazette of India, 1937, Pt. I, p. 1499.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958 by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 f 1960), s. 2.
[2]The word "Indian" omitted by A. O., 1949, Sch.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for sub-section (2) as amended by A. O., 1949, Sch., and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.
[4]Subs. by the Indian Works of Defence (Amdt.) Act, 1921 (11 of 1921) s. 2, for the original cls. (c) and (d).
[5]Subs. by the Works of Defence (Amdt.) Ordinance, 1961 (34 of 1961), s. 2, for cl. (c) as amended by A. O., 1949, Sch., and A. O., 1937.
[6] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

[1][(d) the expression "General Officer Commanding the Division" means with reference to a work pertaining to the Army, the army officer for the time being in command of the forces in a Division, with reference to a work pertaining to the Navy, the naval officer for the time being in command of the forces in a Division and with reference to a work pertaining to the Air Force, the air force officer for the time being in command of the forces in a Division]:]

(e) the expression "Commanding Officer" means the officer for the time being in command of a work of defence:

(f) the expression "Collector" includes any officer specially appointed by the [2][Federal Government] to perform the functions of a Collector under this Act :

(g) the expression "Court" means a principal Civil Court of original jurisdiction, unless the [2][Federal Government] has appointed (as it is hereby empowered to do) a special judicial officer within any specified local limits to perform the functions of the Court under this Act:

(h) "maintain", with its grammatical variations and cognate expressions, does not, when used in relation to a house or other construction, include the doing of any act necessary for keeping such house or construction, until the making of the award referred to in section 12 or until the exercise, prior to the making of the award, of the powers of demolition conferred, in case of emergency, by section 6, sub-sections (1) and (3), in the state in which it was at the time of the publication of the notice referred to in section 3, sub-section (2):

(i) the following persons shall be deemed "entitled to act" as and to the extent hereinafter provided, that is to say,— trustees for other persons beneficially interested shall be deemed the persons entitled to act with reference to any case, and that to the same extent as the persons beneficially interested could have acted if free from disability:

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the guardians of minors and the committees or managers of lunatics or idiots shall be deemed respectively the persons so entitled to act, to the same extent as the minors, lunatics or idiots themselves, if free from disability, could have acted:

Provided that—

(i) no person shall be deemed "entitled to act" whose interest in the subject-matter is shown to the satisfaction of the Collector or Court to be adverse to the interest of the person interested for whom he would otherwise be entitled to act;

[1]Subs. by Ordinance 34 of 1961, s. 2, for cl. (d)
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which had been subs. by A. O., 1937, for "L.G.".
[3]Certain words were omitted by the Federal Laws (Revision and Declaration) Ordinance. 1981 (27 of 1981), s. 3 and Second Sch.

(ii) in every case the person interested may appear by a next friend or, in default of his appearance by a next friend, the Collector or Court, as the case may be, shall appoint a guardian for the case to act on his behalf in the conduct thereof ;

(iii) the provisions of [1][Order XXXII of the First Schedule to the, Code of Civil Procedure, 1908 (Act V of 1908),] shall, *mutatis mutandis*, apply in the case of persons interested appearing before a Collector or Court by a next friend, or by a guardian for the case, in proceedings under this Act ; and

(iv) no person "entitled to act" shall be competent to receive the compensation-money payable to the person for whom he is entitled to act, unless he would have been competent to alienate the land upon the use and enjoyment of which restrictions are to be imposed and receive and give a good discharge for the purchase-money on a voluntary sale [2][;]

[3][(j) the expression "work" or "work of defence" means any defence establishment and include a naval dockyard, an airfield, a runway, an emergency landing ground or any area declared by the [4][Federal Government] to be a "work" or "work of defence" ;

(k) the expression "Clearance Area" means—

(i) an area 250 yards wide measured on either side and at right angle to the centre line of a runway along its full length ;

(ii) an area 75 yards wide measured on either side and at right angle to the centre line of a taxi way along its full length ;

(iii) an area 42 yards wide all round an apron or hard standing measured from the outer edge ;

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(iv) an area immediately adjacent to both ends of a runway 300 yards long measured along and symmetrical to extended centre line of a runway and 250 yards wide either side of the centre line ; and

(v) an area 500 yards wide flaring up to 707 yards beyond that mentioned in the preceding clause at each end of runway extending on the ground for a distance of 1,000 yards along and symmetrical about the extended centre line of a runway;

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "Chapter XXXI of the Code of Civil Procedure".
[2]Subs. by the Works of Defence (Amdt.) Ordinance, 1961 (34 of 1961), s. 2, for the full-stop.
[3]Clauses (j), (k), (1), (m), (n), (o), (p) and (q), added *ibid*.
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(l) "Funnel Area" means air space clearance at each end of a runway beginning at the end of the area mentioned in clause (k) (v) at the elevation of the end of runway and rising on a slope of 1 in 50 (for every 50 feet horizontal one foot vertical, known as glide angle) for a horizontal distance of 3,033 yards measured along and symmetrical about the extended centre line of runway, the width of the Funnel Area at the end of the distance mentioned in clause (k) (v) being 707 yards flaring up to 1,333 yards at the end;

(m) "Area of Restricted Height" means air space clearance at each end of a runway beginning at the end of Funnel Area above an elevation of 60 yards measured above the elevation of the end of the runway and with a width of 1,333 yards and a length of 5,000 yards measured along and symmetrical about the extended centre line of the runway;

(n) "Inner Horizontal Surface" means an air space clearance above an elevation of 50 yards over and above the established airfield elevation, the extent of this surface being limited to an area included within a radius of 4,333 yards measured from the geometrical centre of the runway known as reference point;

(o) "Inner Conical Surface" means air space clearance extended outward and upward from the periphery of the Inner Horizontal Surface for a distance of 2,333 yards, the slope of Conical Surface being 20 horizontal to one vertical protruding above ;

(p) "Outer Horizontal Surface" means air space clearance above an elevation of 166 yards over and above the established airfield elevation, the extent of this surface being limited to an area included between the outer periphery of Inner Conical Surface and a circle having a radius of 16,667 yards measured from the reference point;

(q) "Transition Surface" means air space clearance joining two adjacent surfaces with a slope of 7 horizontal to one vertical measured outward and upward and all along the sides of runway Clearance Area, Funnel Area and Area of Restricted Height, the slope being measured at right angle to the runway axis except, at the ends of the Area of Restricted Height where it will be measured parallel to it.]

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PART II

IMPOSITION OF RESTRICTIONS

3. Declaration and notice that restrictions will be imposed.— (1) Whenever it appears to the [1][Federal Government] that it is necessary to impose restrictions upon the use and enjoyment of land in the vicinity of any work of defence or of any site intended to be used or to be acquired for any such work, in order that such land may be kept free from buildings and other obstructions, a declaration shall be made to that effect under the signature of a Secretary to such Government or of some officer duly authorised to certify its orders.

(2) The said declaration shall be published in the [2][official Gazette] and shall state the district or other territorial division in which the land is situate and the place where a sketch plan of the land, which shall be prepared on a scale not smaller than six inches to the mile and shall distinguish the boundaries referred to in section 7, may be inspected; and the Collector shall cause public notice of the substance of the said declaration to be given at convenient places in the locality.

[1]Subs. by F. A. Q., 1975, Art. 2 and Table for "Central Government", which had been subs. by A. O., 1937, for "L.G.".
[2]Subs. by A. O., 1937, for "local official Gazette".

(3) The said declaration shall be conclusive proof that it is necessary to keep the land free from buildings and other obstructions.

4. Power to do preliminary acts after publication of notice under section 3, sub-section (2). It shall be lawful for such officer as the [1][Federal Government] may, by general or special order, authorise in this behalf, and for his servants and workmen, at any time after publication of the notice mentioned in section 3, sub-section (2), to enter upon and survey and take levels of any land in such locality, to dig or bore into the sub-soil, to do all other acts necessary to ascertain whether any and, if so, what restrictions should be imposed on the use and enjoyment of the land, to set out the boundaries of the land upon the use and enjoyment of which restrictions are to be imposed, or of any part of such land, to mark such levels, boundaries and line by placing marks and cutting trenches, and, where otherwise the survey cannot be completed and the levels taken and the boundaries and line marked, to cut down and clear away any part of any standing crop, fence or jungle:

Provided that no person shall enter into any building or upon any enclosed court or garden attached to a dwelling -house (unless with the consent of the occupier thereof) without previously giving such occupier at least seven days' notice in writing of his intention to do so.

5. Payment for damage. The officer so authorised shall at the time of such entry pay or tender payment for all necessary damage to be done as aforesaid, and, in case of dispute as to the sufficiency of the amount so paid or tendered, he shall at once refer the dispute to the decision of the Collector or other chief revenue-officer of the district, and such decision shall be final.

6. Further powers exercisable after publication of notice under section 3, sub-section (2).—(1) Whenever a declaration has been made and public notice thereof has been given under section 3, it shall, subject to the provisions of sub-sections (2) to (4), be lawful for such officer as the [1][Federal Government] may, by general or special order, authorise in this behalf, and for his servants and workmen, to enter and demolish any buildings or other constructions on the surface, to cut down or grub up all or any of the trees, to remove or alter all or any of the banks, fences, hedges and ditches, to make underground and other drains, to fill up all excavations, and demolish all buildings and other constructions below the surface, and generally to level and clear the said land and do all such acts for, levelling and clearing the same as he may deem necessary or proper, but in such manner nevertheless that evidence of the boundaries of the lands held by different owners may be preserved.

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(2) The powers conferred by sub-section (1) shall not be exercised,—

(a) save as otherwise provided by sub-section (3),before the making of the award hereinafter referred to in section 12, nor

(b) save as otherwise provided by sub-section (4), after the expiration of six months from the making of the said award, or any shorter period on the expiration of which the officer exercising such powers gives notice to the Collector that there will be no further exercise of them.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which had been subs. by A. O., 1937, for "L. G.".

(3) In case of emergency, the [1][Federal Government] [2]* * * may, by notification in the [3][official Gazette], declare that all or any powers conferred by sub-section (1) may be exercised at any time within six months after the publication of the notice referred to in section 3, sub-section (2), and such powers may be exercised accordingly, and the said notification shall be conclusive proof of emergency.

(4) Nothing in sub-section (2) shall be deemed to preclude any such officer or his servants or workmen from exercising at any time the said powers for the purpose of removing, wholly or in part, any building or other obstruction maintained, created, added to, altered, planted, stacked, stored or otherwise accumulated in contravention of this Act or of any rule or order made thereunder or of any condition prescribed in accordance therewith.

7. Restrictions. From and after the publication of the notice mentioned in section 3, sub-section (2), such of the following restrictions as the [1][Federal Government] may in its discretion declare therein shall attach with reference to such land, namely:-

(a) Within an outer boundary which, except so far as is otherwise provided in section 39, sub-section (4), may extend to a distance of two thousand yards from the crest of the outer parapet of the work,—

(i) no variation shall be made in the ground- level, and no building, wall, bank or other construction above the ground shall be maintained, erected, added to or altered otherwise than with the written approval of the [4][General Officer Commanding the Division], and on such conditions as he may prescribe ;

(ii) no wood, earth, stone, brick, gravel, sand or other material shall be stacked, stored or otherwise accumulated:

Provided that, with the written approval of the [5][General Officer Commanding the Division] and on such conditions as he may prescribe, road-ballast, manure and agricultural produce may be exempted from the prohibition:

Provided also that any person having control of the land as owner, lessee or occupier shall be bound forthwith to remove such road-ballast, manure or agricultural produce, without compensation, on the requisition of the Commanding Officer;

(iii) no surveying operation shall be conducted otherwise than by or under the personal supervision of a public servant duly authorised in this behalf, in the case of land under the control of military authority, by the Commanding Officer and, in other cases, by the Collector with the concurrence of the Commanding Officer ; and

[1]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government", which had been subs. by A. O., 1937, for "L. G.".
[2]The words "with the previous sanction of the G. G. in C." rep., *ibid.*
[3]Subs. *ibid.*, for "local official Gazette".
[4]Subs. by the Works of Defence (Amdt.) Ordinance, 1961 (34 of 1961), s. 3, for "General Officer Commanding the District" which had been subs. by the Indian Works of Defence (Amdt.) Act, 1921 (11 of 1921), s. 3, for "General Officer Commanding the Division".
[5]Subs. by Ordinance 34 of 1961, s.3, for "General Officer Commanding the District" which had been subs. by Act 11 of 1921, s.3 for General Officer Commanding the Division, District or Brigade".

(iv) where any building, wall, bank or other construction above the ground has been permitted under clause (i) of this sub-section to be maintained, erected, added to or altered, repairs shall not, without the written approval of the [1][General Officer Commanding the Division], be made with materials different in kind from those employed in the original building, wall, bank or other construction.

(b) Within a second boundary which may extend to a distance of one thousand yards from the crest of the outer parapet of the work, the restrictions enumerated in clause (a) shall apply with the following additional limitations, namely:—

[2][*(i)* no building, wall, bank or other construction of permanent materials above the ground shall be maintained otherwise than with the written approval of the [3][General Officer Commanding the Division] and on such conditions as he may prescribe, and no such building, wall, bank or other construction shall be erected:]

Provided that, with the written approval of the [1][General Officer Commanding the Division] and on such conditions as he may prescribe, huts, fences or other constructions of wood or other materials, easily destroyed or removed, may be maintained, erected, added to or altered:

Provided, also, that any person having control of the land as owner, lessee or occupier shall be bound forthwith to destroy or remove such huts, fences or other constructions, without compensation, upon an order in writing signed by the [1][General Officer Commanding the Division] ; and

(ii) live hedges, rows or clumps of trees or orchards shall not be maintained, planted, added to or altered otherwise than with the written approval of the [4][General Officer Commanding the Division] and on such conditions as he may prescribe.

(c) Within a third boundary which may extend to a distance of five hundred yards from the crest of the outer parapet of the work, the restrictions enumerated in clauses (a) and (b) shall apply with the following additional limitation, namely:-

no building or other construction on the surface, and no excavation, building or other construction below the surface, shall be maintained or erected:

Provided that, with the written approval of the Commanding Officer and on such conditions as he may prescribe, [5][a building or other construction on the surface may be maintained and] open railings and dry brush-wood fences may be exempted from this prohibition.

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[1]Subs. by the Works of Defence (Amdt.) Ordinance, 1961 (34 of 1961), s. 3, for "General Officer Commanding the District" which had been subs. by the Indian Works of Defence (Amdt.) Act, 1921 (11 of 1921), s. 3, for "General Officer Commanding the Division".
[2]Subs. by the Indian Works of Defence (Amdt.) Act, 1940 (28 of 1940), s. 2 (a), for the original cl. (i).
[3]Subs. by Ordinance 34 of 1961, s. 3, for "General Officer Commanding the District".
[4]Subs. by the Works of Defence (Amdt.) Ordinance, 1961 (34 of 1961), s. 3, for "General Officer Commanding the District" which had been subs. by the Indian Works of Defence (Amdt.) Act, 1921 (2 of 1921), s. 3, for "General Officer Commanding the Division, District or Brigade".
[5]Ins. by the Indian Works of Defence (Amdt.) Act, 1940 (28 of 1940), s. 2 (b).

[1]**[7A. Restrictions with reference to airfield.** From and after the publication of the notice mentioned in section 3, sub-section (2), such of the following restrictions as the [2][Federal Government] may in its discretion declare therein shall attach with reference to the land in the vicinity of an airfield, namely:—

(a) No variation shall be made in the ground level, and no building, wall or other construction above the ground level and no obstruction or ditch shall be permitted in the Clearance Area.

(b) No building, wall, bank or other construction above the ground level shall be maintained, erected, added to or altered in the Funnel Area, Area of Restricted Height, Transition Surface, Inner Conical Surface and Outer Horizontal Surface, otherwise than with the written approval of the General Officer Commanding the Division, and on such conditions as he may prescribe.]

8. Land to be marked out, measured, registered and planned. As soon as may be after the publication of the declaration aforesaid, the Collector shall cause the land to be marked out and measured, and shall also prepared a register and a detailed plan, which shall be on a scale not smaller than six inches to the mile, showing accurately every building, tree and other obstruction.

9. Notice to persons interested.— (1) At any time before the expiration of-

(a) the period of eighteen months from the publication of the declaration referred to in section 3, or

(b) such other period not exceeding three years from the said publication as the [2][Federal Government] [3]* * * may, by notification in the [4][official Gazette], direct in this behalf, the Collector shall cause public notice to be given at convenient places on or near the land, stating the effect of the said declaration and that claims to compensation for all interests in such land affected by anything done or ordered in pursuance of such declaration may be made to him:

Provided that, where anything has been done in exercise of the powers conferred, in case of emergency, by section 6, sub-section (3), the notice prescribed by this section shall be given as soon as may be thereafter.

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(2) Such notice shall state the particulars of any damage ordered to be done or, in the case referred to in section 6, sub-section (3), done in exercise of any of the powers conferred by the said section, and the particulars of any restrictions attaching to the land under section 7, and shall require all persons interested in the land to appear personally or by agent before the Collector at a time and place therein mentioned (such time not being earlier than fifteen days after the date of publication of the notice), and to state the nature of their respective interests in the land and the amount and particulars of their claims to compensation for damage to such interests and their objections (if any) to the measurements made under section 8. The Collector may in any case require such statement to be made in writing and signed by the party or his agent.

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[1]S. 7A added by Ordinance 34 of 1961, s. 4.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government",
[3]The words "with the previous sanction of the G. G. in C.", rep., by A. O., 1937.
[4]Subs. ibid., for "local official Gazette".

(3) The Collector shall also serve notice to the same effect on the occupier (if any) of such land and on all such persons known or believed to be interested therein, or to be entitled to act for persons so interested, as reside or have agents authorised to receive service on their behalf, within the revenue-district in which the land is situate.

(4) In case any person so interested resides elsewhere, and has no such agent, the notice shall be sent to him by post in a letter addressed to him at his last known residence, address or, place of business.

10. Power to require and enforce the making of statements as to names and interests. The Collector may also require any such person to make or deliver to him, at a time and place mentioned (such time not being earlier than fifteen days after the date of the requisition), a statement containing, so far as may be practicable, the name of every other person possessing any interest in the land or any part thereof as co-proprietor, sub-proprietor, mortgagee, tenant or otherwise, and of the nature of such interest, and of the rents and profits (if any) received or receivable on account thereof for three years next preceding the date of the statement.

11. Application of certain sections of the Pakistan Penal Code. Every person required to make or deliver a statement under section 9 or section 10 shall be deemed to be legally bound to do so within the meaning of sections 175 and 176 of the Pakistan Penal Code (XLV of 1860).

12. Inquiry and award by Collector. On the day fixed under section 9 or on any other day to which the inquiry has been adjourned, the Collector shall proceed to inquire into the objections (if any) which any person interested has stated pursuant to a notice given under the said section to the measurements made under section 8, and into the decrease in the value of the land, and into the respective interests of the persons claiming the compensation, and shall make an award under his hand of—

(a) the true area of the land and the nature of the obstructions from which the land is to be kept free ;

(b) the compensation which in his opinion should be allowed for any damage caused or to be caused under section 6 and for any restrictions imposed under section 7 ; and

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(c) the apportionment of the said compensation among all the persons known or believed to be interested in the land, of whom or of whose claims he has information, whether they have respectively appeared before him or not.

13. Award of Collector when to be final.—(1) Such award shall be filed in the Collector's office and shall, except as hereinafter provided, be final and conclusive evidence, as between the Collector and the persons interested, whether they have respectively appeared before the Collector or not, of the true area of the land, the nature of the said obstructions from which the land is to be kept free, the damage caused or to be caused under section 6, the value of the rights restricted under section 7, and the apportionment of the compensation among the persons interested.

(2) The Collector shall give immediate notice of his award to such of the persons interested as are not present personally or by their representatives when the award is made.

14. Adjournment of inquiry. The Collector may, for any cause he thinks fit, from time to time adjourn the inquiry to a day to be fixed by him.

15. Power to summon and enforce attendance of witnesses and production of documents. For the purpose of inquiries under this Act the Collector shall have power to summon and enforce the attendance of witnesses, including the parties interested or any of them, and to compel the production of documents, by the same means, and (so far as may be) in the same manner, as is provided in the case of a Civil Court under the [1][Code of Civil Procedure 1908 (Act V of 1908)].

16. Matters to be considered and neglected. In determining the amount of compensation, the Collector shall be guided by the provisions contained in sections 23 and 24.

17. Supplementary proceedings. Whenever the officer exercising powers conferred by section 6 considers it necessary that anything in respect of which any person is or may be entitled to compensation but of which no notice has been given or compensation awarded, under sections 9 and 12, respectively, should be done in pursuance of the said powers, the Collector shall cause supplementary notice to be given, as nearly as may be, in the manner prescribed by section 9 and subject to the limit of time imposed by sub-section (1) of that section, and the provisions of sections 10 to 16 shall, so far as they are applicable, be deemed to apply to any further inquiry and award which may be held or made in consequence of such supplementary notice.

PART III

REFERENCE TO COURT AND PROCEDURE THEREON

18. Reference to Court.—(1) Any person interested who has not accepted the award may, by written application to the Collector, require that the matter be referred by the Collector for the determination of the Court, whether his objection be to the measurement of the land, the amount of the compensation, the persons to whom it is payable, or the apportionment of the compensation among the persons interested:

Provided that every such application shall be made,-

(a) if the person making it was present or represented before the Collector at the time when he made his award, within six weeks from the date of the Collector's award;

(b) in other cases, within six weeks of the receipt of the notice from the Collector under section 13, sub-section (2), or within six months from the date of the Collector's award, whichever period shall first expire.

(2) The application shall state the grounds on which objection to the award is taken.

19. Collector's statement to the Court.— (1) In making the reference the Collector shall state, for the information of the Court, in writing under his hand,-

(a) the situation and extent of the land with particulars of any damage caused under section 6 or of restrictions imposed under section 7;

(b) the names of the persons whom he has reason to think interested in such land ;

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of I981),s. 3 and Second Sch., for "Code of Civil Procedure Act (XIV of 1882)."

(c) the amount of compensation awarded under section 12 ; and,

(d) if the objection be to the amount of the compensation, the grounds on which the amount of compensation was determined.

(2) To the said statement shall be attached a schedule giving the particulars of the notices served upon, and of the statements in writing made or delivered by, the parties interested respectively.

20. Service of notice. The Court shall thereupon cause a notice specifying the day on which the Court will proceed to determine the objection, and directing their appearance before the Court on that day, to be served on the following persons, namely:—

(a) the applicant;

(b) all persons interested in the objection, except such (if any) of them as have consented without protest to receive payment of the compensation awarded; and

(c) if the objection is in regard to the area of the land, the nature of the obstructions or the amount of the compensation, the Collector.

21. Restriction on scope of proceedings. The scope of the inquiry in every such proceeding shall be restricted to a consideration of the interests of the persons affected by the objection.

22. Proceedings to be in open Court. Every such proceeding shall take place in open Court, and all persons entitled to practice in any Civil Court in the Province shall be entitled to appear, plead and act, as the case may be, in such proceeding.

23. Matters to be considered in determining compensation.—(1) In determining the amount of compensation to be awarded for damage caused, or to be caused, or for restrictions imposed under this Act, the Court shall take into consideration—

(a) the actual decrease in market-value of the land owing to the publication of the declaration relating thereto under section 3 and any damage caused or to be caused under section 6 ;

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(b) the damage sustained by the person interested, by reason of the removal of any standing crops in the exercise of any power conferred by section 6;

(c) the damage (if any) sustained by the person interested, by reason of ceasing to be able to use such land conjointly with his other land;

(d) the damage (if any) sustained by the person interested by anything done or ordered under sections 6 and 7 injuriously affecting his other property, moveable or immoveable, in any other manner, or his earnings ; and,

(e) if, in consequence of the imposition of restrictions, the person interested is compelled to change his residence or place of business, the reasonable expenses (if any) incidental to such change.

(2) In addition to the amount representing the actual decrease in the market-value of the land as above provided, the Court shall in every case award a further sum of fifteen per centum on such amount.

24. Matters not to be considered in determining compensation. In determining the amount of compensation to be awarded for damage caused, or to be caused, or for restrictions imposed under this Act, the Court shall not take into consideration-

(a) the degree of urgency which has led to the damage or the imposition of restrictions;

(b) any disinclination of the person interested to submit to damage or restrictions;

(c) any damage sustained by him, which, if caused by a private person, would not render such person liable to a suit ;

(d) any increase to the value of the other land of the person interested, accruing or likely to accrue from anything done under this Act ; or

(e) any outlay or improvements on, or disposal of, the land commenced, made or effected without the sanction of the Collector after the date of the publication of the declaration under section 3.

25. Rules as to amount of compensation.—(1) When the applicant has made a claim to compensation, pursuant to any notice given under section 9, the amount awarded to him by the Court shall not exceed the amount so claimed or be less than the amount awarded by the Collector under section 12.

(2) When the applicant has refused to make such claim or has omitted without sufficient reason (to be allowed by the Judge) to make such claim, the amount awarded by the Court shall in no case exceed the amount awarded by the Collector.

(3) When the applicant has omitted for a sufficient reason (to be allowed by the Judge) to make such claim, the amount awarded to him by the Court shall not be less than, and may exceed, the amount awarded by the Collector.

26. Form of awards. Every award under this Part shall be in writing signed by the Judge, and shall specify the amount awarded under section 23, sub-section (1), clause (*a*), and also the amounts (if any) respectively awarded under each of the other clauses of the same sub-section, together with the grounds of awarding each of the said amounts.

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27. Costs.—(1) Every such award shall also state the amount of costs incurred in the proceedings under this Part, and by what persons and in what proportion they are to be paid.

(2) When the award of the Collector is not upheld, the costs shall ordinarily be paid by the Collector, unless the Court is of opinion that the claim of the applicant was so extravagant or that he was so negligent in putting his case before the Collector that some deduction from his costs should be made or that he should pay a part of the Collector's costs.

28. Collector may be directed to pay interest on excess compensation. If the sum which, in the opinion of the Court, the Collector ought to have awarded as compensation is in excess of the sum which the Collector did award as compensation, the Court may direct that the Collector shall pay interest on such excess at the rate of six per centum per annum from the date of his award to the date of payment of such excess into Court.

PART IV

APPORTIONMENT OF COMPENSATION

29. Particulars of apportionment to be specified. Where there are several persons interested, if such persons agree in the apportionment of the compensation, the particulars of such apportionment shall be specified in the award, and as between such persons the award shall be conclusive evidence of the correctness of the apportionment.

30. Dispute as to apportionment. When the amount of compensation has been settled under section 12, if any dispute arises as to the apportionment of the same or any part thereof, or as to the persons to whom the same or any part thereof is payable, the Collector may refer such dispute to the decision of the Court.

PART V

PAYMENT

31. Payment of compensation or deposit of same in Court.—(1) On making an award under section 12, the Collector shall tender payment of the compensation awarded by him to the persons interested entitled thereto according to the award, and shall pay it to them unless prevented by some one or more of the contingencies mentioned in sub-section (2).

(2) If they do not consent to receive it, or if there is no person competent to alienate the land, or if there is any dispute as to the title to receive the compensation or as to the apportionment of it, the Collector shall deposit the amount of the compensation in the Court to which a reference under section 18 would be submitted:

Provided, first, that any person admitted to be interested may receive such payment under protest as to the sufficiency of the amount:

Provided, secondly, that no person who has received the amount otherwise than under protest shall be entitled to make any application under section 18:

Provided, thirdly, that nothing herein contained shall affect the liability of any person, who may receive the whole or any part of any compensation awarded under this Act, to pay the same to the person lawfully entitled thereto.

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(3) Notwithstanding anything in this section, the Collector may, with the sanction of the [1][Federal Government], instead of awarding a money-compensation in respect of any land, make any arrangement with a person having a limited interest in such land, either by the grant of other lands in exchange, or by the remission of land-revenue on the same or on other lands held under the same title, or in such other way as may be equitable having regard to the interests of the parties concerned.

(4) Nothing in sub-section (3) shall be construed to interfere with or limit the power of the Collector to enter into any arrangement with any person interested in the land and competent to contract in respect thereof.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which had been subs. by A. O., 1937 for 'L.G.'

32. Investment of money deposited in respect of lands belonging to persons incompetent to alienate.—(1) If any money is deposited in Court under section 31, sub-section (2), and it appears that the land in respect of which the same was awarded belonged to any person who had no power to alienate the same, the Court shall order the money to be invested—

(*a*) in the purchase of other lands to be held under the like title and conditions of ownership as the land in respect of which such money was deposited is held, or,

(*b*) if such purchase cannot be effected forthwith, then in such Government or other approved securities as it thinks fit; and shall direct the payment of the interest or other proceeds arising from such investment to the person or persons who would for the time being have been entitled to the possession of the said land, and such moneys shall remain so deposited and invested until the same are applied—

(i) in the purchase of such other lands as aforesaid; or

(ii) in payment to any person or persons becoming absolutely entitled thereto.

(2) In all cases of moneys deposited to which this section applies, the Court shall order the cost of the following matters, including therein all reasonable charges and expenses incident thereto, to be paid by the Collector, namely:—

(*a*) the costs of such investments as aforesaid;

(*b*) the costs of the orders for the payment of the interest or other proceeds of the securities in which such moneys are for the time being invested, and for the payment out of Court of the principal of such moneys and the costs of all proceedings relating thereto, except such as may be occasioned by litigation between adverse claimants.

33. Investment of money deposited in other cases. If any money is deposited in Court under this Act for any cause other than that mentioned in section 32, the Court may, on the application of any party interested or claiming an interest in such money, order the same to be invested in such Government or other approved securities as it thinks fit, and may direct the interest or other proceeds of any such investment to be accumulated and paid in such manner as will, in its opinion, give the parties interested therein the same benefit therefrom as they might have had from the land in respect of which such money was deposited or as near thereto as may be.

34. Payment of Interest. When the amount of any compensation awarded under this Act is not paid or deposited within fifteen days of making the award, the Collector shall pay the amount awarded with interest thereon at the rate of six per centum per annum from the date of the award until it is so paid or deposited.

PART VI

MISCELLANEOUS

35. Service of notices.—(1) Service of any notice under this Act shall be made by delivering or tendering a copy thereof signed, in the case of a notice under section 3, sub-section (2), by the officer therein mentioned, and, in the case of any other notice, by or by order of the Collector or the Judge.

(2) Whenever it may be practicable, the service of the notice shall be made on the person therein named.

(3) When such person cannot be found, the service may be made on any adult male member of his family residing with him; and, if no such adult male member can be found, the notice may be served by fixing the copy on the outer door of the house in which the person therein named ordinarily dwells or curies on business, or by fixing a copy thereof in some conspicuous place in the office of the officer aforesaid or of the Collector or in the court-house and also in some conspicuous part of the land upon which restrictions are to be imposed:

Provided that, if the Collector or Judge so directs, a notice may be sent by post in a letter addressed to the person named therein at his last known residence, address or place of business and service of it may be proved by the production of the addressee's receipt.

36. Penalties. Whoever wilfully—

(a) obstructs any person in doing any of the acts authorized by section 4, section 6 or section 8, or

(b) destroys, damages, alters or otherwise interferes with the ground-level or any work done under section 6, or

(c) contravenes any of the provisions of section 7, [1][section 7A] *or* any condition prescribed there under, shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to fifty rupees, or with both, and, in the case of a continuing offence, with an additional fine which may extend to five rupees for every day after the first in regard to which he is convicted of having persisted in the offence; and any expenses incurred in removing the effects of his offence may be recovered from him in the manner provided by the law for the time being in force for the recovery of fines.

37. Magistrate to enforce the terms of the Act. If the Collector or officer authorized under section 6 is opposed or impeded in doing anything directed or permitted by this Act, he shall, if a Magistrate, enforce compliance, and, if not a Magistrate, he shall apply to a Magistrate [2]* * * and such Magistrate [3]* * * shall enforce compliance.

38. Completion of imposition of restrictions not compulsory, but compensation to be awarded when not completed.—(1) The [4][Federal Government] shall be at liberty to withdraw from the imposition of any declared restrictions before any of the measures authorized by section 6 have been taken.

(2) Whenever the [4][Federal Government] withdraws the imposition of any declared restrictions, the Collector shall determine the amount of compensation due for the damage suffered by the owner in consequence of the notice or of any proceedings thereunder, and shall pay such amount to the person interested, together with all costs reasonably incurred by him in the prosecution of the proceedings under this Act relating to the said restrictions.

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[1]Ins. by the Works of Defence (Amdt.) Ordinance, 1961 (34 of 1961), s. 5.
[2]The words and brackets "or (within the towns of Calcutta, Madras and Bombay) to the Commissioner of Police" omitted by A. O., 1949, Sch. The words "and Bombay" had been subs. for "Bombay and Rangoon" by *A.* O., 1937.
[3]The words and brackets "or Commissioner (as the case may be)" omitted by A. O., 1949, Sch.
[4]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government' which had been subs. by A. O.,1937, for "L. G.",

(3) The provisions of Part III shall apply, so far as may be, to the determination of the compensation payable under this section.

39. Demolition of part of house or building and imposition of restrictions on part of land.—(1) The provisions of this Act shall not be put in force for the purpose of demolishing or acquiring the right to demolish a part only of any house, manufactory or other building, if the owner desires that the whole of such house, manufactory or building shall be demolished or that the right to demolish the whole of it shall be acquired:

Provided that the owner may at any time before the Collector has made his award under section 12, by notice in writing, withdraw or modify his expressed desire that the whole of such house, manufactory or building shall be demolished, or that the right to demolish the whole of it shall be acquired:

Provided, also, that, if any question shall arise as to whether any building or other construction proposed to be demolished under this Act does or does not form part of a house, manufactory or building within the meaning of this section, the Collector shall refer the determination of such question to the Court, and such building or other construction shall not be demolished until after the question has been determined.

In deciding on such a reference the Court shall have regard to the question whether the building or other construction proposed to be demolished is reasonably required for the full and unimpaired use of the house, manufactory or building.

(2) If, in the case *of* any claim *of* the kind referred to in section 23, sub-section (1), clause (c), by a person interested, on account of ceasing to be able to use the land, upon the use and enjoyment of which restrictions are to be imposed, conjointly with his other land the [1][Federal Government] is of opinion that the claim is unreasonable or excessive, it may at any time before the Collector has made his award, order the imposition of restrictions upon the whole of the land of which the land upon the use and enjoyment of which it was first sought to impose restrictions forms a part.

(3) In the case provided for by sub-section (2) no fresh declaration or other proceeding under sections 3 to 10 shall be necessary; but the Collector shall without delay furnish a copy of the order of the [1][Federal Government] to the person interested, and shall thereafter proceed to make his award under section 12.

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(4) Notwithstanding anything contained in section 7, clause (a), any land, upon the use and enjoyment of which restrictions are imposed under this section, may be included in the outer boundary, even though its distance from the crest of the outer parapet of the work exceeds two thousand yards.

40. Exemption from stamp duty and fees. No award or agreement made under this Act shall be chargeable with a stamp duty, and no person claming under any such award or agreement shall be liable to pay any fee for a copy of the same.

41. Notice in case of suits for anything done in pursuance of Act. No suit or other proceeding shall be commenced or prosecuted against any person for anything done in pursuance of this Act, without giving to such person a month's previous notice in writing of the intended proceeding, and of the cause thereof, nor after tender of sufficient amends.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, *for* "Central Government ", which had been subs. by A. O., 1937, for "L. G.".

42. Code of Civil Procedure to apply to proceedings before Court. Save in so far as they may be inconsistent with anything contained in this Act, the provisions of the [1][Code of Civil Procedure, 1908 (Act V of 1908)] shall apply to all proceedings before the Court under this Act.

43. Appeals in proceedings before Court. Subject to the provisions of the [1][Code of Civil Procedure, 1908 (Act V of 1908)] applicable to appeals from original decrees, an appeal shall lie to the High Court from the award or from any part of the award of the Court in any proceeding under this Act.

44. Power to make rules.— (1) The [2][Federal Government] [3]* * * may make rules for the guidance of officers in all matters connected with the enforcement of this Act.

(2) The power to make rules under sub-section (1) shall be subject to the condition of the rules being made after previous publication.

(3) All rules made under sub-section (1) shall be published in the [4][official Gazette], and shall thereupon have effect as if enacted in this Act.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "Code of Civil Procedure (XIV of 1882)".
[2]Subs. by F.A. O., 1975, Art. 2 and Table, for "Central Government", which had been subs. by A. O. 1937, for "G.G. in C".
[3]The words "and the L.G., with the previous sanction of the G.G. in C" rep. by A. O., 1937.
[4]Subs. *ibid.*, for "local official Gazette".

THE WAR INJURIES ORDINANCE, 1941

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THE WAR INJURIES ORDINANCE, 1941

[1]ORDINANCE No. VII OF 1941

[*25th July, 1941*]

An Ordinance to make provision for the grant of relief in respect of certain personal injuries sustained during the continuance of [2][* *] *hostilities.*

WHEREAS an emergency has arisen which renders it necessary to make provision for the grant of relief in respect of certain personal injuries sustained during the continuance of [2][* *] hostilities;

Now, THEREFORE, in exercise of the powers conferred by section 72 of the Government of India Act, as set out in the Ninth Schedule to the Government of India Act, 1935, the Governor-General is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the War Injuries Ordinance, 1941.

[3][(2) It extends to the whole of Pakistan].

(3) It shall come into force at once.

2. Interpretation.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(1) "civil defence organization" means any organisation established for civil defence purposes which is declared by a scheme to be a civil defence organisation for the purposes of this Ordinance and the scheme;

(2) "civil defence volunteer", in relation to an injury, means a person certified, by an officer of a civil defence organisation authorised by the [4][Federal Government] to grant such certificates, to have been a member of that organisation at the time the injury was sustained;

[5][(3) "continuance of hostilities" means,—

(a) in relation to the hostilities during 1939-1945, the period beginning with the commencement of this Ordinance and ending on the date declared by the late Government of India to be the date on which the said hostilities terminated; and

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[1]The Ordinance has been applied to Balochistan, *see* Notification No.23-W, dated the 1st October, 1941.
It has been extended to the Leased Areas of Balochistan by the Leased Areas (Laws) Order, 1950 (G.G.O.3 of 1950).
This Ordinance has been applied to the Provincially Administered Tribal Areas of Balochistan, *see* Regualtion No.IV of 1987, Art.2 and Sch.

[2]Omitted by Ordinance No. XXXIII of 1965, s. 2.

[3]Subs. by the Central Laws (Statute Reform) Ordinance No. XXI of 1960, s. 3 and 2nd Sch.

[4]Subs. by F.A.O., 1975, Art.2 and Table.

[5]Subs. by Ordinance No. XXXIII of 1965,s.3.
The present hostilities as respects the tribal areas beyond the western and northern boundaries of the North-West Frontier Province and such of the Baluch tribal areas beyond the western border of the Dera Ghazi Khan District of the Punjab as are not included in the Baluchistan Tribal Areas, shall be deemed to have terminated on the 31st August, 1945, *see* Notification No. 1-W., dated the 8th January, 1946, Gazette of India, 1945, Pt. I, p. 30.

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(b) in relation to any other hostilities, the period beginning with the date declared by the [1][Federal Government], by notification in the official Gazette, to be the date of the commencement of hostilities for the purpose of this Ordinance and ending on the date declared likewise to be the date of termination of such hostilities ;]

(4) "gainfully occupied person" means a person who is engaged in any trade, business, profession, office, employment or vocation and is wholly or substantially dependent thereon for a livelihood, or a person who, though temporarily unemployed is normally so engaged and dependent;

(5) "scheme" means a scheme made under this Ordinance;

(6) "war injury" means a physical injury—

(a) caused by—

(i) the discharge of any missile (including liquids and gas), or

(ii) the use of any weapon, explosive or other noxious thing, or

(iii) the doing of any other injurious act, either by the enemy or in combating the enemy or in repelling an imagined attack by the enemy; or

(b) caused by the impact on any person or property of any enemy aircraft, or any aircraft belonging to or held by any person on behalf of or for the benefit of [2][Government] or any allied power, or any part of, or anything dropped from, any such aircraft; [3][or]

[3][(c) caused by any explosion or fire which involves any explosives or munitions or other dangerous things required for war purposes and which happens or is caused by, through, or in connection with the manufacture, storage or transportation of any such explosives, munitions or other dangerous things;]

(7) "war service injury", in relation to a civil defence volunteer, means any physical injury shown to the satisfaction of the [1][Federal Government] or other authority authorised to make payments under a scheme to have arisen out of and in the course of the performance by the volunteer of his duties as a member of the civil defence organisation to which he belonged at the time the injury was sustained, and (except in the case of a war injury) not to have arisen out of and in the course of his employment in any other capacity:

Provided that before being so satisfied the [1][Federal Government] or other authority authorised to make payments under a scheme shall have received from the civil defence organisation of which the volunteer concerned was a member at the time the injury was sustained, a report, by an officer of the organisation authorised by the [1][Federal Government] to make such reports, about the injury in question.

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[1]Subs. by F.A.O., 1975, Art.2 and Table.
[2]Subs. by A. O., 1961, Art. 2.
[3]Added by Ordinance No. X of 1945, s. 2.

3. Power to make schemes for relief in respect of war injuries and war service injuries. —(1) The [1][Federal Government] may make a scheme or schemes in accordance with the provisions of this Ordinance providing for the grant of relief in respect of the following injuries sustained during the continuance of [2][* *] hostilities, namely:—

(a) war injuries sustained by gainfully occupied persons (with such exceptions, if any, as may be specified in the scheme) and by persons of such other classes as may be so specified ; and

(b) war service injuries sustained by civil defence volunteers.

(2) A scheme may authorise the [1][Federal Government], or any authority authorised by the [1][Federal Government] to make payments under the scheme in such circumstances and subject to such conditions as may be specified in the scheme, to make to or in respect of persons injured —

(a) payments by way of temporary allowance, which shall be payable only so long as the person injured is incapacitated for work by the injury and has not received any such payment as is mentioned in clause (b);

(b) payments otherwise than by way of temporary allowance, which shall be payable only where the injury causes serious and prolonged disablement or death ; and

(c) payments for the purchase of or the grant at the cost of Government of artificial limbs or surgical or other appliances [3][and payments for medical and surgical treatment].

(3) A scheme may empower the [1][Federal Government] to make regulations for giving effect to the purposes of the scheme.

(4) A scheme may provide that it shall come into operation or shall be deemed to have come into operation on such date as may by specified therein.

(5) A scheme may be amended or rescinded at any time by the [1][Federal Government.]

(6) Any decision of the [1][Federal Government] or other authority empowered to make payments under a scheme as to the making, refusal or amount, or as to the continuance or discontinuance, of a payment under a scheme may be varied from time to time by a subsequent decision of the [1][Federal Government] or such authority as the case may be, but save in so far as it is so varied shall be final and conclusive.

4. Relief from liability to pay compensation or damages.—(1) In respect of a war injury sustained during the continuance of [4][* *] hostilities by any person, and in respect of a war service injury sustained during that period by a civil defence volunteer, no such compensation or damages shall be payable, whether to the person injured or to any other person, as apart from the provisions of this sub-section—

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[1]Subs. by F.A.O.,1975, Art.2 and Table,.
[2]Omitted by Ordinance No. XXXIII of 1965, s. 4.
[3]Added by Ordinance No. I of 1942, s. 2.
[4]Omitted by Ordinance No. XXXIII of 1965, s. 5.

(a) would be payable under the Workmen's Compensation Act, 1923 (VIII of 1923); or

(b) would, whether by virtue of any enactment or by virtue of any contract or at common law, be payable —

(i) in the case of a war injury, by any person, or

(ii) in the case of a war service injury sustained by a civil defence volunteer, by the employer of the volunteer, or by any person who has responsibility in connection with the volunteer's duties as such or by any other civil defence volunteer, on the ground that the injury in question was attributable to some negligence, nuisance or breach of duty for which the person by whom the compensation or damages would be payable is responsible.

(2) The failure to give a notice or make a claim or commence proceedings within the time required by any enactment shall not be a bar to the maintenance of proceedings in respect of any personal injury, if —

(a) an application for a payment under a scheme has been duly made to the [1][Federal Government] or other authority empowered to make payments under the scheme in respect of the injury; and

(b) the Court or other authority before which the proceedings are brought is satisfied that the said application was made in the reasonable belief that the injury was such that a payment could be made under the scheme; and

(c) the [1][Federal Government] or other authority empowered to make payments under the scheme certifies that the application was rejected, or that payments made in pursuance of the application, were discontinued, on the ground that the injury was not such an injury ; and

(d) the proceedings are commenced within one month from the date of the said certificate.

5. Information as to earnings. —(1) Where it is necessary in order to determine the amount of any payment to be awarded under a scheme in respect of any injury, to ascertain the earnings of the person injured in respect of any period before he sustained the injury, the [1][Federal Government or other authority authorised to make payments under the scheme may by notice in writing require —

(a) any person who was an employer of the injured person during that period, or

(b) any other person having any knowledge with respect to the financial circumstances of the injured person during that period, to furnish in accordance with the notice any information in his possession relating to those earnings or circumstances, and to produce to any person specified in the notice any wage books, records or other documents in his possession containing entries with respect to those earnings.

[1]Subs. by F.A.O., 1975, Art.2 and Table.

(2) If any person —

(a) fails to comply with the requirements of any such notice, or

(b) in purported compliance with any such notice, knowingly or recklessly makes any untrue statement or untrue representation, or produces any document which is false in a material particular or calculated to deceive, he shall be punishable with fine which may extend to three hundred rupees.

[1][**5A. Medical attention in dispensaries and hospitals.**—(1) The person managing any dispensary or hospital shall, if so required by the [2][Federal] or a Provincial Government by general or special order, —

(a) provide at the dispensary or hospital medical and surgical treatment for persons who have sustained injuries of the nature specified in sub-section (1) of section 3, and

(b) keep such records and make such returns relating to the persons treated for such injuries as may be required by or under a scheme.

(2) If any person fails to comply when so required with the provisions of this section he shall be punishable with fine which may extend to one thousand rupees.]

6. Penalty for false statement.—Any person, who for the purpose of obtaining a payment or grant under a scheme either for himself or for any other person, knowingly makes any untrue statement or untrue representation, shall be punishable with imprisonment for a term which may extend to three months.

7. Assignment or charges to be void.—Any assignment of, or charge on, and any agreement to assign or charge any payment awarded or to be awarded under a scheme shall be void, and, on the insolvency of any person to whom such a payment has been awarded, the payment shall not pass to any trustee or other person acting on behalf of the creditors.

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Date: 22-05-2024

[1]S.5A ins. by Ordinance No. I of 1942, s.3.
[2]Subs. by F.A.O., 1975, Art.2 and Table.

THE TOLLS (ARMY AND AIR FORCE) ACT, 1901

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2. Definitions
3. Exemptions from tolls
4. Tolls on vessels transporting troops and baggage, etc., of troops embarked or disembarked
5. Penalty
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THE TOLLS (ARMY AND AIR FORCE) ACT, 1901

[1]ACT No. II of 1901

[22nd February, 1901]

An Act to amend the law relating to the exemption from tolls of persons and property belonging to the Army [2][or Air Force].

[3][WHEREAS it is necessary to provide for the exemption from the payment of certain duties or tolls of certain officers, soldiers, airmen and other persons, and certain animals, baggage and carriages belonging or attached to the Pakistan Army, or the [4]* Pakistan Air Force ;]

It is hereby enacted as follows:-

1. **Short title, extent and commencement.**—(1) This Act may be called the [5]* Tolls [6][(Army and Air Force)] Act, 1901

[7][(2) it extends to the whole of Pakistan.]

(3) It shall come into force on the first day of April, 1901.

[8]**[2. Definitions.** In this Act, unless there is anything repugnant in the subject or context,-

(a) the expression "authorised followers" means persons other than officers, soldiers or airmen, who are employed by, or are in the service of, the [9][Forces, Corps or Guard] concerned, or are in the service of any officer, soldier or airman of such [9][Forces, Corps or Guard] ;

(b) "carriage" means a vehicle for carriage or haulage other than one specially constructed for use on rails ;

(c) "ferry" includes every bridge and other thing which is a ferry within the meaning of any enactment authorising the levy of tolls on ferries, but does not include any ferry or other thing which is included in the definition of "railway" in section 3 of the Railways Act, 1890 (IX of 1890) ;

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1899, Pt. V, p. 175; for Report of the Select Committee, *see ibid*., 1901, Pt. V, p. 7; for Proceedings in Council, *see ibid*. 1900, Pt. VI, p. 236; ibid., 1901, Pt. VI, pp. 11 and 16.
The Act has been declared in force in Baluchistan by Baluchistan Regulation No. II of 1913, s. 3.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. 1, p. 1499.
It has been extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended.
It has also been extended to the Khairpur State, *see* G. G. O. 5 of 1953, as amended by G. G. O. 24 of 1953.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960) s. 2
This Act has been applied to the whole of the Centrally Administered Tribal Tribal Areas by Regulation No. III of 1972.
[2]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and Sch. I.
[3]Subs. by the Indian Tolls (Army and Air Force) (Amdt.) Act, 1951 (38 of 1951), s. 2, for the original preamble as amended by Act 10 of 1927.
[4]The word "Royal" omitted by A. O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*)
[5]The word "Indian" omitted by Act 38 of 1951, s. 3.
[6]Subs. by the Indian Tolls (Army) Amendment Act, 1942 (14 of 1942), s.2, for "Army".
[7]Subs. by the Indian Tolls (Army and Air Force) (Amdt.) Act, 1951 (38 of 1951), s. 3, for sub-section (2).
[8]Subs. by the Indian Tolls (Army) Amendment Act, 1942 (14 of 1942), s. 3, for the original section 2 as amended by the Repealing and Amending Act, 1927 (10 of 1927), 14 of 1932, 32 of 1934, and A. O., 1937.
[9]Subs. by Act 38 of 1951, s. 4., for "Forces or Corps".

[1][(d) the expressions "the Pakistan Army" and "the [2]* Pakistan Air Force" include the Reserves, respectively, of the Pakistan Army and the [2]* Pakistan Air Force, when subject to military or air force law, as the case may be ;]

(e) "horse" includes a mule and any beast of whatever description which is used for burden or draught or for carrying persons ;

[3][(f) the expression "Irregular Corps" means any force (other than the Pakistan Territorial Force or the Pakistan National Guard) raised and maintained in Pakistan under the authority of the [4][Federal Government] or any other force which may be specified in this behalf by a notification published in the official Gazette ;]

[5][(g) the expression "Pakistan Reserve Forces" means the forces constituted under the Pakistan (Army and Air Force) Reserves Act, 1950 (XLVII of 1950);]

(h) "landing-place" includes a pier, wharf, quay, jetty and a stage, whether fixed or floating;

[6][(i) "public authority" means the [4][Federal Government] or a Provincial Government, or a local authority, [7]* * * and, so far as regards tolls levied by a railway company, under section 51 of the Railways Act, 1890 (IX of 1890), includes such a company ;]

(j) "tolls" includes duties, dues, rates, rents, fees and charges, but does not include customs duties levied under the [8][Customs Act, 1969 (IV of 1969), octroi duties or town duties on the import of goods, or fares paid for the conveyance of passengers on a tramway.]

3. Exemptions from tolls. The following persons and property, namely:-

[9][(a) all officers, soldiers and airmen of-

(*i*) the Pakistan Army and the [10]* Pakistan Air Force,

(*ii*) any Irregular Corps, or

[11]* * * * * * *

THE PAKISTAN CODE

[1]Subs. by Act 38 of 1951, s. 4.
[2]The word "Royal" omitted by A. O., 1961, Art. 2 and Sch. *(with effect from the 23rd March, 1956)*
[3]Subs. by Act 38 of 1951, for clause (f).
[4]Subs. by F.A.O,. 1975, Art, 2 and Table, for "Central Government".
[5]Subs. By Act 38 of 1951, for clause (g).
[6]Subs. by the Indian Tolls (Army and Air Force) (Amdt.) Act, 1951 (38 of 1951), for clause (i)
[7]The words "or in an Acceding State, the Government of that State" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.,
[8]subs. *ibid.*, for "Tariff Act, 1934 (XXXII of 1937)."
[9]Subs. by Act 38 of 1951, s. 5, for clause (a), which was subs. by the Indian Tolls (Army) Amendment Act, 1942 (14 of 1942), s. 4, for the original clause as amended by the Repealing and Amending Act, 1927 (10 of 1927).
[10]The words "Royal" omitted by A.O., 1961, Art. 2 and Sch., *(with effect from the 23rd March, 1956).*
[11]Sub-clause (iii), omitted by Ordinance 27 of 1981, s. 3 and Second Sch.

[1][(b) all members of the [2][Pakistan Territorial Force or of the Pakistan National Guard] when on duty or when proceeding to or returning from duty;

(c) all officers, soldiers and airmen of the [3][Pakistan] Reserve Forces when proceeding from their place of residence on being called out for service, training, or muster or when proceeding back to their place of residence after such service, training or muster ;

[4](d) all authorised followers of-

(*i*) the Pakistan Army or the [5]* Pakistan Air Force ;

(*ii*) the Pakistan Territorial Force, or the Pakistan National guard ;

(*iii*) any Irregular Corps ; or

[6]* * * * * * *

(e) all members of the families of officers, soldiers, airmen or authorised followers of__

(i) [7][the Pakistan Army or the [8]* Pakistan Air Force], or

(ii) any Irregular Corps, when accompanying anybody of troops, or any officer, soldier, airman or authorized follower thereof on duty or on the march,

(f) all prisoners under military or air force escort,

(g) the carriages, horses, and baggage, and the persons (if any) employed in driving the carriages or in carrying the baggage, of any persons exempted under any of the foregoing clauses, when such carriages, horses, baggage, or persons accompany the persons so exempted under the circumstances mentioned in those clauses respectively,]

[9][(h)] all carriages and horses belong to [10][the [11][Federal Government]] or employed in] military [12][or air-force] service and all persons in charge of or accompanying the same, when conveying any such persons as hereinbefore in this section mentioned, or when conveying baggage or stores, or when returning unladen from conveying such persons, baggage or stores,

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[1]Subs. by Act 14 of 1942, s. 4, for clauses (b) to (h), as amended by Act 10 of 1927, s. 2 and Sch. I.
[2]Subs. by Act, 38 of 1951, s 5 for the words and brackets "Auxiliary Force (India), or of the Indian Territorial Force".
[3]Subs. *ibid.*, for "Indian"
[4]Subs. *ibid.*, for clause (d) which had been subs. by Act 14 of 1942, s. 4, for the original clause (d).
[5]The words "Royal" omitted by A.O., 1961, Art. 2 and Sch., *(with effect from the 23rd March, 1956).*
[6]Sub- clause (iv) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.
[7]Subs. by the Indian Tolls (Army and Air Force) (Amdt.) Act,1951 (38 of 1951), s. 5, for "His Majesty's Regular Forces".
[8]The word "Royal" omitted by A. O., 1961, Art. 2 and Sch. *(with effect from the 23rd March, 1956).*
[9]The original cls. (i), (j), (k) and (1) were re-lettered as cls. (h), (i), (j) and (k) respectively, by the Indian Tolls (Army) Amendment Act, 1942 (14 of 1942), s. 4.
[10]Subs. by Act 38 of 1951, s. 5, for "His Majesty or employed in His Majesty's".
[11]Subs. by F.A.O ., 1975 Art. 2 and Tables, for the "Central Government"
[12]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and Sch. I

[1][(i)] all carriages and horses, when moving under the orders of military [2][or air-force] authority for the purpose of being employed in [3]* * military [2][or air-force] service,

[1][(j)] all animals accompanying anybody of troops which are intended to be slaughtered for food or kept for any purpose connected with the provisioning of such troops, and

[4][(k)] all persons in charge of any carriage, horse or animal exempted under any of the foregoing clauses when accompanying the same under the circumstances mentioned in those clauses respectively, shall be exempted from payment of any tolls-

(i) on embarking or disembarking, or on being shipped or landed, from or upon any landing-place, or

(ii) in passing along or over any turnpike or other road or bridge, or

(iii) on being carried by means of any ferry, otherwise demandable by virtue of any Act, Ordinance, Regulation, order or direction of any legislature or other public authority in [5][Pakistan]:

Provided that nothing in this section shall exempt any boats, barges or other vessels employed in conveying the said persons or property along any canal from payment of tolls in like manner as other boats, barges and vessels.

[6][*Explanation*.- The persons or property exempted under clauses (d), (e), (g) and (j) shall be deemed to accompany the Forces, [7][Corps, Guard,] persons or property concerned when the move of the former is the direct result of, or is connected with, the move of the latter, irrespective of the interval of space and time between the two moves.]

4. Tolls on vessels transporting troops and baggage, etc., of troops embarked or disembarked.—

(1) No tolls shall be leviable by any local authority in respect of—

(a) any vessel employed by [8][the [9][Federal Government]] solely for the transport of troops, or

(b) the horses, baggage or other effects of any troops embarking or disembarking at any port, or

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[1]The original cls. (i), (j), (k) and (1) were re-lettered as cls. (h), (i), (j) and (k) respectively, by the Indian Tolls (Army) Amendment Act, 1942 (14 of 1942), s. 4.
[2]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and Sch. I
[3]The words "His Majesty's" omitted by Act 38 of 1951, s. 5.
[4]The original cls. (i), (j), (k) and (1) were re-lettered as cls. (h), (i), (j) and (k), respectively, by the Indian Tolls (Army) Amendment Act, 1942 (14 of 1942), s. 4.
[5]Subs. by the Indian Tolls (Army and Air Force) (Amdt.) Act, 1951 (38 of 1951), s. 5, for the words "the Provinces and the Capital of the Federation" which were subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[6]*Explanation* added by Act 14 of 1942, s. 4.
[7]Subs. by Act 38 of 1951, s. 5, for "troops".
[8]Subs. by A. O., 1937, for "the Govt.".
[9] Subs. by F.A.O ., 1975, Art, 2, and Table for " Central Government".

(c) carriages belonging to [1][the [2][Federal Government]] or employed in] military [3][or air-force] service embarking or disembarking at any port.

(2) In respect of all such vessels or troops, their families, their horses, baggage and their effects, or any such carriages as aforesaid, the local authority concerned shall, in addition to its duties in the embarking and disembarking of the same, perform and supply all such reasonable services and accommodation as may, from time to time, be required by [4][the [2][Federal Government]] and shall receive payment for all such services and accommodation on such terms and for such periods as may, from time to time, be determined by [4][the [2]Federal Government]] in consultation with such local authority.

5. Penalty. Any person who demands and receives any toll in contravention of the provisions of section 3 or section 4 shall be punishable with fine which may extend to fifty rupees.

6. Compensation.— (1) If any owner or lessee, or any Company, railway administration or local authority claims compensation for any loss alleged to have been incurred owing to the operation of this Act, the claim shall be submitted to the [5][Federal Government].

(2) On receiving any such claim, the [3][Federal Government] [6]* * * shall pass such order thereon as justice requires, and shall give all necessary directions for the purpose of ascertaining the facts of the case and of assessing the compensation, if any, to be paid.

7. Rules.— (1) The [7][Federal Government] [8]* * * may make rules to carry out the purposes and objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, the [7][Federal Government] [9]* * * may make rules[10] providing for the form of passes to be given to persons or bodies of persons or in respect of property entitled to exemption from the payment of tolls under this Act.

(3) The power to make rules under this section is subject to the condition of the rules being made after previous publication.

(4) All rules made under this section shall be published in the [11][official Gazette] [12]* * * and, on such publication, shall have effect as if enacted by this Act.

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8. [*Repeals*.] *Rep. by the Repealing and Amending Act, 1914 (X of 1914), s. 3 and Schedule II.*

[THE SCHEDULE.] *Rep. by the Repealing and Amending Act, 1914 (X of 1914), s. 3 and Schedule II.*

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Date: 11-09-2024

[1]Subs. by Act 38 of 1951, s. 6, for "His Majesty or employed in His Majesty's".
[2]Subs. by F.A.O., 1975, Art, 2, and Table for " Central Government".
[3]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and Sch. I.
[4]Subs. by A. O., 1937, for "the Govt.".
[5]Subs. *ibid.,* for "Central Government". which had been subs. by A. O., 1937, for "L. G."
[6]The words "subject to the Control of the G. G. in C." rep., by A.O., 1937.
[7]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which had been subs. by A. O., 1937, for "G.G. in C".
[8]The words "or the L. G., with the previous sanction of the G. G. in C"., rep., *ibid.*
[9]The words "or the L. G., with the previous sanction of the G. G. in C"., rep., *ibid.*
[10]For such rules, *see* Gaz. of P., 1957, Pt. III, pp. 125-126.
[11]Subs. by A. O., 1937, for "Gazette of India".
[12]The words "or in the local official Gazette" rep., *ibid.*

THE PRIVATE MILITARY ORGANISATIONS (ABOLITION AND PROHIBITION) ACT, 1974

CONTENTS

1. Short title, extent and commencement
2. Power to declare organisation illegal
3. Punishment for forming private military organisation, etc.
4. Power to make rules
5. [Omitted]

THE PAKISTAN CODE

THE PRIVATE MILITARY ORGANISATIONS (ABOLITION AND PROHIBITION) ACT, 1973

ACT NO. IV OF 1974

[24th December, 1973]

An Act to abolish, and provide a penalty for the formation of, certain organisations prohibited by the Constitution

WHEREAS Article 256 of the Constitution of the Islamic Republic of Pakistan prohibits the formation of a private organisation capable of functioning as a military organisation and declares such organisation illegal;

AND WHEREAS it is necessary to abolish, and provide a penalty for the formation of, such organisation;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Private Military Organisations (Abolition and Prohibition) Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Power to declare organisation illegal.—(1) If the Federal Government is satisfied that any private organisation is capable of functioning as a military organisation in violation of the prohibition in Article 256 of the Constitution, the Federal Government may, by notification published in the official Gazette, direct that the organisation shall stand abolished forthwith.

(2) Every such notification shall specify the grounds on which it is issued:

THE PAKISTAN CODE

Provided that nothing in this sub-section shall require the Federal Government to disclose any fact which it considers to be against the public interest to disclose.

Explanation.— For the purposes of this section and section 3, an organisation shall be deemed to be capable of functioning as a military organisation if it is organised, trained or equipped so as to be capable of being employed for the use or display of physical force in promoting or attaining any object.

3. Punishment for forming private military organisation, etc. —Whoever—

(a) forms, organises, trains or equips a private organisation capable of functioning as a military organisation, or is a member or adherent, or takes part in the activities, of any such organisation; or

(b) is a member or adherent, or takes part in the activities, of any organisation in respect of which a notification under section 2 has been issued;

shall be punishable with imprisonment for a term which may extend to five years and with fine.

4. Power to make rules. —The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

5. [1][Omitted]

THE PAKISTAN CODE

RGN Date: 21-05-2024

[1]Omitted by Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, sch.II.

THE PAKISTAN NAVY (EXTENSION OF SERVICE) ACT, 1950

CONTENTS

1 Short title, and commencement.

2 Extension of service where term of service has expired.

THE PAKISTAN NAVY (EXTENSION OF SERVICE) ACT, 1950

[1]ACT No. XXIV OF 1950

[30*th* *January*, 1950]

An Act to provide for the retention in service of certain persons enrolled for service in the [2]* Pakistan Navy.

WHEREAS it is expedient to provide for the retention in service of certain persons enrolled for service in the [2]* Pakistan Navy;

It is hereby enacted as follows :—

1. Short title, and commencement.—(1) This Act may be called the [2]* Pakistan Navy (Extension of Service) Act, 1950.

(2) It shall come into force at once

2. Extension of service where term of service has expired. Until such date as may be notified in this behalf by the [3][Federal Government], any person enrolled for service in the [2]* Pakistan Navy who, by reason of the expiry of the term for which

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[1] *For Statement of Objects and Reasons, see Gaz. of P.,1950, Pt. V, p. 52.*

The Act has been—
(i) applied to Baluchistan, with effect on and from the 1st October, 1952, see Gaz. of P.,1952, Pt. I, p.168;
(ii) applied in the Federated Areas of Baluchistan, see Ibid., 1953, Pt. I p. 152;
(iii) extended to the Leased Areas of Baluchistan- see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950);
(iv) extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended; and
(v) extended to the Khairpur State, see the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953).
The Act has been and shall be deemed to has been brought into force in Gwadur with effect from the 8th September 1958, by the Gwadur (Application of (Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

[2] *The word "Royal" omitted by A. O.,1961, Art, 2 and Sch. (with effect from 23rd March, 1956).*

[3] *Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".*

he was engaged to serve when so enrolled, is no longer liable for service shall, notwithstanding such expiry, continue to be enrolled for service and to be liable for service in the [1]* Pakistan Navy until he is discharged by the order of the Officer Commanding the [1]* Pakistan Navy:

Provided that the period for which the service of any such person is extended under this section shall not exceed five years from the day on which his service would otherwise have terminated.

[2]* * * * * * *

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[1]*The word "Royal" omitted by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).*

[2]*Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.—*

THE PAKISTAN MILITARY ACADEMY (DEGREES AND CERTIFICATES) ORDINANCE, 1959

CONTENTS

1. Short title and commencement

2. Definition

3. Conferment of degrees, etc., on cadets and officers

4. Power to make regulations

THE SCHEDULE

THE PAKISTAN CODE

THE PAKISTAN MILITARY ACADEMY (DEGREES AND CERTIFICATES) ORDINANCE, 1959

ORDINANCE No. LI of 1959

[16*th* *September*, 1959]

An Ordinance to authorise the Pakistan Military Academy at Kakul to confer degrees and grant certificates.

WHEREAS it is expedient to authorise the Pakistan Military Academy at Kakul to confer degrees and grant certificates;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Pakistan Military Academy (Degrees and Certificates) Ordinance, 1959.

(2) It shall come into force at once.

2. Definition. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Academy" means the Pakistan Military Academy at Kakul;

(b) "certificate" means a certificate mentioned in Part II of the Schedule; and

(c) "degree" means a degree mentioned in Part I of the Schedule.

3. Conferment of degrees, etc., on cadets and officers.—[1][(1)] The Academy shall have the power to confer a degree on, or grant a certificate to, any gentleman cadet of the Academy on his successful completion of the appropriate course at the Academy, and such power shall include the power to confer a degree on, or grant a certificate to, any officer who at any time before the commencement of this Ordinance was commissioned from the Academy.

[1][(2) The provisions of sub-section (1) shall apply to those gentlemen cadets of the Academy who, before the commencement of the Pakistan Military Academy (Degrees and Certificates) (Amendment) Ordinance, 1962, had successfully completed their training at the Royal Military Academy, Sandhurst, or who, after such commencement, successfully complete their training at that Academy.]

4. Power to make regulations.—The Academy may, with the previous approval in writing of the [2][Federal Government], make Regulations for carrying out the purposes of this Ordinance.

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[1]Re-numbered and added by ordinance No. XIX of 1962, s.2.
[2]Subs. by F.A.O., 1975.

THE PAKISTAN CODE

THE SCHEDULE

PART I

Academic Courses

Name	Degree to be awarded
1. Arts Course—1	B.A. (KAKUL ACADEMY).
2. Science Course—1	B.Sc. (KAKUL ACADEMY).

PART II

Academic Courses

Name	Certificate to be awarded
1. Arts Course—2	Intermediate in Arts (KAKUL ACADEMY).
2. Science Course—2.	Intermediate in Science (KAKUL ACADEMY).

THE PAKISTAN CODE

RGN Date: 20-05-2024

THE PAKISTAN JUNIOR CADET CORPS ACT, 1953

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Constitution of Junior Cadet Corps
4. Constitution and organization of units
5. Certain students to be deemed to be enrolled
6. Officers of the Junior Cadet Corps
7. Officers to be attached to regular units for training
8. Officers to be subject to military law
9. Allowance of officers
10. Termination of officer's commissions
11. Military training of cadets
12. Discipline of Cadets
13. Members of Junior Cadet Corps not to be liable to perform service
14. Power to make rules

THE PAKISTAN JUNIOR CADET CORPS ACT, 1953

ACT No. XXXVI of 1953

[5th *November,* 1953]

An Act to constitute a Junior Cadet Corps

WHEREAS it is expedient to provide for the constitution and maintenance of a Junior Cadet Corps for Pakistan and for its administration ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.— (1) This Act may be called the Pakistan Junior Cadet Corps Act, 1953.

(2) It applies to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "cadet" means a school boy who is deemed to be enrolled as a cadet under sub-section (1) of section 5 ;

(b) [1][* * * * * * *]

(c) "prescribed" means prescribed by rules made under this Act.

3. Constitution of Junior Cadet Corps. There shall be raised and maintained in the manner hereinafter provided a force, which shall be designated the Junior Cadet Corps, and shall consist of units constituted under section 4.

4. Constitution and organization of units.—(1) Subject to the control of the [2][Federal Government], the [1][Chief of the Army Staff] may, by order in writing, direct the constitution and maintenance for any boys' school in Pakistan of two separate companies of the Junior Cadet Corps, each company to consist of the boys of one of each of the two final classes of the school, and may direct the disbandment of the companies so constituted.

(2) The companies constituted under sub-section (1) from schools located in the same revenue district shall jointly constitute a battalion to be designated after the name of that district.

5. Certain students to be deemed to be enrolled.—(1) On the constitution of a company under sub-section (1) of section 4, every student of the class concerned who,—

[1]Omitted and subs. by The Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975, Art. 2 and Sch.
[3]Subs., *ibid.* Art. 2 and Table.

(i) is above thirteen years of age, at the commencement of the academic year, or by the first day of April of that year, and

(ii) is certified on examination by an officer of the Pakistan Army Medical Corps to be physically fit to undergo the prescribed military training, shall be deemed to have been enrolled as a cadet in that company.

(2) A student who is deemed to be enrolled as a cadet in a company under sub-section (1) shall not cease to belong to that company, until he passes out of or otherwise leaves, the class for which the company was constituted, or is duly certified by an officer of the Pakistan Army Medical Corps to have become physically unfit to undergo further military training.

6. Officers of the Junior Cadet Corps.—(1) The [1][Federal Government], on the recommendation of the Headmaster of the school for which units of the Junior Cadet Corps have been constituted under sub-section (1) of section 4, supported by the Director of Public Instruction of the Province concerned and the officer commanding the local military formation being not below the rank of brigadier, may appoint any member of the staff of that school, who is not less than twenty-three and not more than thirty-five years of age, as an officer of the corps.

(2) A person appointed officer under sub-section (1) shall be granted a commission in the form prescribed in this behalf under sub-section (2) of section 232 of the Government of India Act, 1935 [3][or under clause (2) of Article 40 of the Constitution] [4][of 1956 or under clause (2) of Article 17 of the Constitution of 1962] [2][or under clause (2) of Article 56 of the Interim Constitution of 1972 or under clause (2) of Article 243 of the Constitution of 1973].

7. Officers to be attached to regular units for training. An officer of the Junior Cadet Corps shall be liable, under the orders of the officer commanding the local military formation being not below the rank of brigadier, to be attached to a unit of the regular army for undergoing the military training prescribed for his class.

8. Officers to be subject to military law. An officer of the Junior Cadet Corps shall, when undergoing military training under section 7, be subject to [5][* * *] the Pakistan Army Act, 1952 (XXXIX of 1952),] in such manner and to such extent as may be prescribed.

9. Allowance of officers.—An officer of the Junior Cadet Corps may be paid such allowance by the Provincial Government concerned as may have been agreed upon between the [1][Federal Government] and the Provincial Government:

Provided that an officer, who is attached to a regular unit for training under section 7, shall receive such additional allowances as may be prescribed.

10. Termination of officer's commissions.— (1) The [1][Federal Government] may withdraw the commission of an officer at any time and for any cause whatever.

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[1]Subs. by The Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[2]Added *ibid.*, Art. 2 and Sch.
[3]Added by The Central Adaptation of Laws Order, 1961 (P. O. No. 1 of 1961), Art. 2 and Sch.
[4]Ins. by The Central Adaptation Order of Laws 1964 (P. O. No. 1 of 1964), Art. 2 and Sch.
[5]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.

(2) An officer of the Junior Cadet Corps shall cease to hold his commission—

(i) on ceasing to be a member of the staff of the school from which he received his commission:

Provided that an officer who is immediately re-employed in another school for which companies of the Junior Cadet Corps have been constituted under subsection (1) of section 4 may, on the recommendation of the Headmaster of that school, be allowed by the [1][Chief of the Army Staff] to retain his commission ;

(ii) on attaining the age of forty-five years.

11. Military training of cadets.—A cadet shall be liable to undergo the prescribed military training.

12. Discipline of Cadets.—(1) The Headmaster of each school shall be Honorary commanding officer of the companies constituted for his school under sub-section (1) of section 4 and the primary responsibility for enforcing discipline in those companies shall rest on him.

(2) With the approval of the [1][Chief of the Army staff] the Headmaster of each school may frame rules for the punishment of cadets who wilfully and without reasonable cause absent themselves from parades held for imparting the prescribed military training or who are otherwise guilty of conduct to the prejudice of good order and discipline in the Junior Cadet Corps.

(3) In addition to any other punishment, which the Headmaster may specify therein, the rules made under sub-section (2) shall provide for the subjection of the offender to extra drill for twenty minutes.

13. Members of Junior Cadet Corps not to be liable to perform service.—Officers and cadets of the Junior Cadet Corps shall not be liable to perform military service of any kind whatever.

14. Power to make rules. The [1][Chief of the Army Staff] may, with the approval of the [2][Federal Government], make rules to provide for any matter which may be prescribed under this Act and to carry out the purposes of this Act.

Date: 03-02-2025

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Sch.
Subs. *ibid.*, Art. 2 and Table.

THE PAKISTAN ARMED FORCES NURSING SERVICE ACT, 1952

CONTENTS

1. Short title, application and commencement
2. Definitions
3. Constitution of Pakistan Armed Forces Nursing Service
4. Liability for service of members of the Pakistan Armed Forces Nursing Service
5. Members to be of commissioned rank
6. Eligibility for appointment
7.
8.
9. Application of the Pakistan Army Act, 1952, the Pakistan Air Force Act, 1953, and the Pakistan Navy Ordinance, 1961, to members of the Pakistan Armed Forces Nursing Service
10. Power to make rules
11. Power to make regulations

THE PAKISTAN CODE

THE PAKISTAN ARMED FORCES NURSING SERVICE ACT, 1952

[1]ACT No. XXXVI of 1952

[5th May, *1952*]

An Act to constitute a force to be called the [2][Pakistan Armed Forces Nursing Service] and to provide for its discipline.

WHEREAS it is expedient to constitute a force to be called the [2][Pakistan Armed Forces Nursing Service], as a part of the Armed Forces of Pakistan, and to provide for its discipline;

It is hereby enacted as follows:—

1. Short title, application and commencement.—(1) This Act may be called the [2][Pakistan Armed Forces Nursing Service] Act, 1952.

(2) It applies to the members of the [2][Pakistan Armed Forces Nursing Service] wherever they may be.

(3) It shall come into force at once and shall be deemed to have taken effect on the tenth day of May, 1951.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "prescribed" means prescribed by rules made under this Act;

(b) "regulations" means regulations made under this Act.

3. Constitution of [2][Pakistan Armed Forces Nursing Service]. There shall be raised and maintained, in the manner hereinafter provided, as part of the Armed Forces of Pakistan, [3][a force] which shall be designated the [2][Pakistan Armed Forces Nursing Service].

[3][**4.** ***Liability for service of members of the Pakistan Armed Forces Nursing Service*****.** The members of the Pakistan Armed Forces Nursing Service shall be liable for service with the force or persons subject to the Pakistan Army Act, 1952 (*XXXIX of 1952*), the Pakistan Air Force Act, 1953 (*VI of 1953*) or the Pakistan Navy Ordinance, 1961 (*XXXV of 1961*).]

THE PAKISTAN CODE

[1]The Act has been applied to Baluchistan with effect on and from the 6th May, 1952, see Gaz. of P., 1952, Pt. I, p. 110; and extended to the Leased Areas of Baluchistan, by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).
It has been applied also in the Federated Areas of Baluchistan, see Gaz. of P., 1953, Pt. I, p. 152.
It has been extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953).
This Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958 by the Gwadur (Application of Central Laws) Ordinance, 1960 (XXXVII of 1960), s. 2.
This Act has been and shall be deemed to have been so extended to the whole of Pakistan on the 14th October, 1955 by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch.
[2]Subs. by Act No. XXXIX (w. e. f. 10th May, 1951), s. 2.
[3]Subs. by Act No. V of 1963, ss. 2-3.

5. Members to be of commissioned rank.—All members of the [1][Pakistan Armed Forces Nursing Service] shall be of commissioned rank and shall be appointed as officers of the [1][Pakistan Armed Forces Nursing Service] by the [2][Federal Government], by notification in the official Gazette.

6. Eligibility for appointment.—(1) Any female citizen [3][* * *] shall be eligible for appointment as an officer in the [1][Pakistan Armed Forces Nursing Service] and, if she satisfies the prescribed conditions, may be appointed thereto in the manner laid down in section 5 of this Act:

Provided that a woman who is not a citizen of Pakistan but who otherwise fulfils the conditions laid down by, or under this section for a citizen of Pakistan, may, with the consent of the [2][Federal Government], signified in writing, be appointed as an officer in the [1][Pakistan Armed Forces Nursing Service].

(2) Every person so appointed shall be subject to this Act and to the rules and regulations made thereunder.

[1][**7.** The [2][Federal Government], or any authority empowered by the [2][Federal Government] in this behalf, may [3][dismiss, remove, release, or cause of retirement of,] any officer from the Pakistan Armed Forces Nursing Service.]

[1][**8.** Subject to the provisions of this Act, an officer of the Pakistan Armed Forces Nursing Service shall be bound to undergo such training and in such manner and to perform such duties in connection with the forces and persons subject to any of the enactments referred to in section 4 as may be laid down by regulations.]

[3][**9. *Application* of the Pakistan Army Act, 1952, the Pakistan Air Force Act, 1953, and the Pakistan Navy Ordinance, 1961, to members of the Pakistan Armed Forces Nursing Service.**— (1) The provisions of the Pakistan Army Act, 1952 (*XXXIX of 1952*), shall, to such extent and subject to such adaptations and modifications as may be prescribed, apply to officers of the Pakistan Armed Forces Nursing Service, who may be serving with forces and persons subject to that Act as those provisions apply to officers of the Pakistan Army.

(2) The provisions of the Pakistan Air Force Act, 1953 (*VI of 1953*), shall, to such extent and subject to such adaptations and modifications as may be prescribed, apply to officers of the Pakistan Armed Forces Nursing Service, who may be serving with forces and persons subject to that Act as those provisions apply to officers of the Pakistan Air Force.

(3) The provisions of the Pakistan Navy Ordinance, 1961 (*XXXVI of 1961*), shall, to such extent and subject to such adaptations and modifications as may be prescribed, apply to officers of the Pakistan Armed Forces Nursing Service, who may be serving with forces and persons subject to that Ordinance as those provisions apply to officers of the Pakistan Navy.]

10. Power to make rules.— (1) The [2][Federal Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

[1]Subs. by Act No. (XXXIX of 1953, ss. 2, 4 and 5.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[3]Omitted and subs. by Act No. V of 1963, ss. 4-6.

(2) In particular and without prejudice to the generality of the foregoing power, rules may be made under this section,—

(*a*) providing for the medical examination of persons offering themselves for appointment in the [1][Pakistan Armed Forces Nursing Service]; and

(*b*) providing for any matter which under this Act is to be or may be prescribed.

11.Power to make regulations. [2][Any officer or authority empowered in this behalf by the [3][Federal Government]] may make regulations not inconsistent with this Act and rules made thereunder, providing for all matters to be laid down by regulations and generally for all details connected with the organization, pay, allowances, duties, discipline, training, clothing, equipment and leave of members of the [1][Pakistan Armed Forces Nursing Service].

THE PAKISTAN CODE

4p7200wsp

RGN Date: 17-06-2025

[1]Subs. by Act No. XXXIX of 1953, s. 2.
[2]Subs. by Act No. VIII of 1965, s. 2.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.

THE PAKISTAN (ARMY AND AIR FORCE) RESERVES ACT, 1950

CONTENTS

1. Short title and commencement
2. Definitions
3. Divisions of Reserve Forces
4. Liability of reservists to military or air force law
5. Extent of liability for service
6. Power to make rules
7. Power to make regulations
8. [Omitted]
9. [Repealed]

THE SCHEDULE

THE PAKISTAN CODE

THE PAKISTAN (ARMY AND AIR FORCE) RESERVES ACT, 1950

[1]ACT No. XLVII of 1950

[19th *April*, 1950]

An Act to provide for the constitution and discipline of the Pakistan Army and Air Force Reserves.

WHEREAS it is expedient to consolidate and amend the law relating to the government and discipline of the Pakistan Army and Air Force Reserves;

It is hereby enacted as follows: —

1. Short title and commencement.—This Act may be called the Pakistan (Army and Air Force) Reserves Act, 1950.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

"prescribed" means prescribed by rules made under this Act;

"Reserves" means the Reserves of the Pakistan Army or of the [1][*] Pakistan Air Force;

"reservist" means a member of the Reserves.

3. Divisions of Reserve Forces.—(1) The Reserves shall consist of the categories specified in the Schedule to this Act.

(2) The [2][Federal Government] may, by notification in the official Gazette, add to, amend or vary the Schedule to this Act.

4. Liability of reservists to military or air force law. An Army reservist shall be subject to [3][* * *] [4][the Pakistan Army Act, 1952 (XXXIX of 1952),] and the rules and regulations made thereunder and an Air Force reservist shall be subject to [3][* * *] [4][the Pakistan Air Force Act, 1953 (VI of 1953),] and the rules and regulations made thereunder, in such manner and to such extent as may be prescribed.

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5. Extent of liability for service. A reservist shall be liable to serve without the limits of Pakistan as well as within those limits.

6. Power to make rules.—(1) The [2][Federal Government] may make rules to carry out the purposes of this Act.

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[1]Omitted by The Central Laws (Adaptation) Order, 1961 ((P. O. No. 1 of 1961), Art. 2 and Sch.
[2]Subs. by The Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[3]Omitted by the Federal Laws (Revisions and Declaration) Ordinance, 1981 (Order No. XXVII of 1981), s. 3, and 2nd Schedule.
[4]Ins. by the Central Law (Statute Reform) Ordinance, 1961 (XXI of 1960), s. 3 and 2nd Sch.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(a) provide for the constitution of, and the appointment or transfer of any person as a reservist to, the reserves;

(b) prescribe the service obligations to which reservists shall be liable;

(c) prescribe periodical training for any category of reservists;

(d) provide for and regulate the pay and allowances of reservists;

(e) prescribe the authorities by whom and the conditions subject to which the services of reservists may be terminated;

(f) provide for and regulate the gratuities or compensation, if any, to be paid to reservists or any category of reservists, or to any dependents of reservists; and

(g) provide for any other matter which under this Act is to be or may be prescribed.

(3) All rules made under this Act shall be published in the Official Gazette and on such publication shall have effect as if enacted in this Act.

7. Power to make regulations. In the case of Army reservists, the [1][Chief of the Army Staff], and in the case of Air Force reservists, the [1][Chief of the Air Staff] may make regulations not inconsistent with this Act and rules made thereunder, providing generally for all details connected with the training, clothing, equipment and leave of reservists.

8. [2][* * * * * * *]

9. [3][* * * * * * *]

THE SCHEDULE

A.— The Pakistan Army—

(i) the Pakistan Army Regular Reserve of Officers,

(ii) The Pakistan Army Regular Reserve of Junior Commissioned Officers,

(iii) The Pakistan Army Supplementary Reserve of Officers,

(iv) The Pakistan Army Supplementary Reserve of Junior Commissioned Officers and Other Ranks,

(v) The Regular Reserves of Other Ranks.

THE PAKISTAN CODE

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch.
[2]Omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch.
[3]Rep. by the Repealing and Amending Ordinance, 1965 (X of 1965), s. 2 and 1st Sch.

B.— The [1][*] Pakistan Air Force—

(i) The Pakistan Air Force Regular Reserve,

(ii) The Pakistan Air Force volunteer Reserve.

THE PAKISTAN CODE

Date: 29-01-2025

[1]Omitted by The Central Adaptation Order of Laws, 1961 (P. O. No. 1 of 1961), Art. 2 and Sch.

THE NAVAL ARMAMENT ACT, 1923

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1. Short title, extent and commencement
2. Definitions
3. Restriction on building or equipping vessels of war
4. Licences
5. Offences against the Act
6. Liability of ships to forfeiture
7. Seizure, detention and search of ships
8. Procedure in forfeiture of ships
9. Disposal of forfeit
10. Special proof of relevant facts
11. Penalties for proceeding to sea after seizure
12. Power to enter dockyards, etc.
13. Courts by which and conditions subject to which offences may be tried
14. Indemnity

THE PAKISTAN CODE

THE NAVAL ARMAMENT ACT, 1923

ACT No. VII or 1923

[5*th* *March*, 1923]

An Act to give effect in [1]*[Pakistan] to the Treaty for the Limitation of Naval Armament.*

WHEREAS it is expedient to give effect in [1][Pakistan] to the [2][Treaty for the Limitation of Naval Armament and for the Exchange of Information concerning Naval Construction signed in London on behalf of His Majesty on the twenty-fifth day of March, 1936]; It is hereby enacted as follows; —

1. Short title, extent and commencement.—(1) This Act may be called the [3][*] Naval Armament Act, 1923.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date as the [4][Federal Government] may, by notification in the [5][official Gazette], appoint.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context, —

(a) "competent Court" means the High Court or such other Court having unlimited original civil jurisdiction as the [4][Federal Government] may declare to be competent Court for the purposes of this Act ;

(b) "ship" means any boat, vessel, battery or craft, whether wholly or partly constructed, which is intended to float or is capable of floating, on water, and includes all equipment belonging to any ship ; and

[2][(c) "the Treaty" means the Treaty for the Limitation of Naval Armament and for the Exchange of Information concerning Naval Construction signed in London on behalf of His Majesty on the twenty-fifth day of March, 1936.]

THE PAKISTAN CODE

3. Restriction on building or equipping vessels of war.—No person shall, except under and in accordance with the conditions of a licence granted under this Act, —

(a) build any vessel of war, or alter, arm or equip any ship so as to adapt her for use as a vessel of war ; or

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by Act No. II of 1937, s. 2.
[3]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949) Art. 3 and Sch.
[4]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[5]Subs. by A. O., 1937.

(b) despatch or deliver, or allow to be despatched or delivered, from any place in [1][Pakistan] any ship which has been, either wholly or partly, built, altered, armed or equipped as a vessel of war in [2][Pakistan] otherwise than under and in accordance with any law for the time being in force [2][* * *].

4. Licences.—(1) A licence under this Act for any of the purposes specified in section 3 may be granted by the [3][Federal Government], and shall not be refused unless it appears to the [3][Federal Government] that such refusal is necessary for the purpose of securing the observance of the obligations imposed by the Treaty; and, where a licence is granted subject to conditions, the conditions shall be such only as the [3][Federal Government] may think necessary for the purpose aforesaid.

(2) An application for a licence under this section shall be in such form and shall be accompanied by such designs and particulars as the [3][Federal Government] may, by general or special order, require.

[4][(3) Any person who, in pursuance of a licence granted under sub-section (1) before the commencement of the Indian Naval Armament (Amendment) Act, 1937, (II of 1937) is engaged in, building any vessel of war or in altering, arming or equipping any ship so as to adapt her for use as a vessel of war, or is about to despatch or deliver, or allow to be dispatched or delivered, from any place within [1][Pakistan] any ship which has been so built, altered, armed or equipped, either entirely or partly, within [1][Pakistan], shall, upon written demand, furnish to tile [3][Federal Government] such designs and particulars as may be required by the [3][Federal Government] for the purpose of securing the observance of the obligations imposed by the Treaty.]

5. Offences against the Act.—(1) If any person contravenes any of the provisions, of section 3 [4][or fails to comply with the provisions of sub-section (3) of section 4], he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

(2) Where an offence punishable under sub-section (1) has been committed by a company or corporation, every director and manager of such company or corporation shall be punishable thereunder unless he proves that the act constituting the offence took place without his knowledge and consent.

THE PAKISTAN CODE

(3) Nothing contained in section 517 or section 518 or section 520 of the Code of Criminal Procedure, 1898 (V of 1898), shall be deemed to authorise the destruction or confiscation under the order of any Criminal Court of any ship which is liable to forfeiture under this Act or of any part of such ship.

6. Liability of ships to forfeiture.—Any ship which has been, either wholly or partly, built, altered, armed, or equipped as a vessel of war in [1][Pakistan] in contravention of section 3, [2][* * *] shall, if found in [1][Pakistan], be liable to forfeiture under this Act.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.
[3]Subs. by Federal Adaptation of Laws Order, 1975 (P. O. No. 1 of 1975), Art. 2 and Table.
[4]Ins. by Act No. II of 1937, ss. 4 and 5.

7. Seizure, detention and search of ships.—(1) Where a ship is liable to forfeiture under this Act, —

(*a*) any [1][* * *] [2][Executive Magistrate], or

(*b*) any commissioned officer on full pay in the [3][armed forces of Pakistan] [4][* * *] or

(*c*) any officer of customs or police-officer not below such rank as may be designated in this behalf by the [5][Federal Government],

may seize such ship and detain it, and, if the ship is found at sea within the territorial waters of [6][Pakistan], may bring it to any convenient port in [6][Pakistan].

(2) Any officer taking any action under sub-section (1) shall forthwith report the same through his official superiors to the [5][Federal Government].

(3) The [5][Federal Government] shall, within thirty days of the seizure, either cause the ship to be released or make or cause to be made, in the manner, hereinafter provided, an application for the forfeiture thereof, and may make such orders for the temporary disposal of the ship as it thinks suitable.

8. Procedure in forfeiture of ships.—(1) An application for the forfeiture of a ship under this Act may be made by, or under authority from, the [5][Federal Government] to any competent Court within the local limits of whose jurisdiction the ship is for the time being.

(2) On receipt of any such application, the Court shall cause notice thereof and of the date fixed for the hearing of the application to be served upon all persons appearing to it to have an interest in the ship, and may give such directions for the temporary disposal of the ship as it thinks fit.

(3) For the purpose of disposing of an application under this section, the Court shall have the same powers and follow, as nearly as may be, the same procedure as it respectively has and follows for the purpose of the trial of suits under the Code of Civil Procedure, 1908 (V of 1908), and any order made by the Court under this section shall be deemed to be a decree, and the provisions of the said Code in regard to the execution of decrees shall, as far as they are applicable, apply accordingly.

THE PAKISTAN CODE

(4) Where the Court is satisfied that the ship is liable to forfeiture under this Act, it shall pass an order forfeiting the ship to [3][Government]:

Provided that, where any person having an interest in the ship proves to the satisfaction of the Court that he has not abetted, or connived at, or by his negligence facilitated, in any way, a contravention of section 3 in respect of the ship, and such ship has not been built as a vessel of war, it may pass such other order as it thinks fit in respect of the ship or, if it be sold, of the sale proceeds thereof:

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[1]Omitted by Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.
[3]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O No. 1 of 1961), Art. 2 and Sch., for "military, naval or air service of His Majesty" (*with effect from the 23rd March, 1950*).
[4]Omitted by A. O., 1937.
[5]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[6]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955).*

Provided further, that in no case shall any ship which has been altered, armed or equipped as a vessel of war be released until it has been restored, to the satisfaction of the [1][Federal Government], to such condition as not to render it liable to forfeiture under this Act.

(5) The [1][Federal Government] or any person aggrieved by any order of a Court, other than a High Court, under this section may, within three months of the date of such order, appeal to the High Court.

9. Disposal of forfeit.—Where a ship has been forfeited to [2][Government] under section 8, it may be disposed of in such manner as the [1][Federal Government] [3][* * *] directs:

Provided that, where the ship is sold under this section, due regard shall be had to the obligations imposed by the Treaty.

10. Special proof of relevant facts.—If, in any trial, appeal or other proceeding under the foregoing provisions of this Act, any question arises as to whether a ship is a vessel of war or whether any alteration, arming or equipping of a ship is such as to adapt it for use as a vessel of war, the question shall be referred to and determined by the [1][Federal Government], whose decision shall be final and shall not be questioned in any Court.

11. Penalties for proceeding to sea after seizure.—(1) Where a ship which has been seized or detained under section 7 or section 8 and has not been released by competent authority under this Act proceeds to sea the master of the ship shall be punishable with fine which may extend to one thousand rupees, and the owner and any person who sends the ship to sea shall be likewise so punishable unless such owner or person proves that the offence was committed without his knowledge and consent.

(2) Where any ship so proceeding to sea takes to sea, when on board thereof in the execution of his duty, any officer empowered by this Act to seize and detain the ship, the owner and master shall further each be liable, on the order of the Court trying an offence punishable under sub-section (1), to pay all the expenses of and incidental to such officer being taken to sea, and shall further be punishable with fine which may extend to one hundred rupees for every day until such officer returns or until such time as would enable him after leaving the ship to return to the port from which he was taken.

THE PAKISTAN CODE

(3) Any expenses ordered to be paid under sub-section (2) may be recovered in the manner provided in the Code of Criminal Procedure, 1898 (V of 1898), for the recovery of a fine.

12. Power to enter dockyards, etc.—(1) Any person empowered by this Act to seize and detain any ship may, at any reasonable time by day or night, enter any dockyard, shipyard or other place and make inquiries respecting any ship which he has reason to believe is liable to forfeiture under this Act, and may search such ship with a view to ascertaining whether the provisions of this Act have been or are being duly observed in respect thereof, and every person in charge of or employed in such place shall on request be bound to give the person so empowered all reasonable facilities for such entry and search and for making such inquiries.

(2) The provisions of sections 101, 102 and 103 of the Code of Criminal Procedure, 1898 (V of 1898), shall apply in the case of all searches made under this section.

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by the Central Laws (Adaptation) Order, 1949 (P. O. No. 1 of 1961), Art. 2, for "His Majesty" (*with effect from the 23rd March, 1956*).
[3]Omitted by A. O., 1937.

13. Courts by which and conditions subject to which offences may be tried.—No Court inferior to that of a [1][* * *] Magistrate of the first class shall proceed to the trial of any offence punishable under this Act, and no Court shall proceed to the trial of any such offence except on complaint made by, or under authority from, the [2][Federal Government].

14. Indemnity.—No prosecution, suit or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Act.

THE SCHEDULE

[3][Repealed]

THE PAKISTAN CODE

Date: 08-10-2024

[1]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[2]Subs. by Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[3]Rep. by Act No. II of 1937, s. 6.

THE MANOEUVRES, FIELD FIRING AND ARTILLERY PRACTICE ACT, 1938

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THE PAKISTAN CODE

THE MANOEUVRES, FIELD FIRING AND ARTILLERY PRACTICE ACT, 1938

[1]ACT NO. V OF 1938

[*12th March, 1938*]

An Act to provide facilities for Military manoeuvres and for field firing and artillery practice

WHEREAS it is expedient to provide facilities for military manoeuvres and for field firing and artillery practice; It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Manoeuvres, Field Firing and Artillery Practice Act, 1938.

[2][(2). It extends to the whole of Pakistan.]

CHAPTER I

MANOEUVRES

2. Power of Federal Government to authorized manoeuvres.—(1) The [3][Federal Government] may, by notification in the local official Gazette, authorise the execution of military manoeuvres over any area specified in the notification during a specified period not exceeding three months:

[4][* * * * * * *]

(2) The [3][Federal Government] shall publish notice of its intention to issue a notification under sub-section (1) as early a possible in advance of the issue of the notification, and no such notification shall be issued until the expiry of [5][six weeks] from the date of the first publication of such notice in the local official Gazette.

(3) The notice required by sub-section (2) shall be given by publication in the local official Gazette and shall also be given throughout the area which it is proposed to specify by the notification by publication in the manner prescribed by rule made under section 13, and shall be repeated by like publication one month and one week as nearly as may be before the commencement of the manoeuvres.

THE PAKISTAN CODE

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[1]This Act has been applied to Baluchistan, *see* Notification No. 231-F., dated the 15th September, 1938, Gazette of India, 1938, Pt. I, p. 1557.
It has also been extended to—
(i) the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) : and also applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. 1, p. 1499,
(ii) the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended, and
(iii) the Khairpur State, *see* the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5 of 1953), as amended.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (XXXVII of 1960), s. 2.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960, (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by A. O., 1949.

[3]Subs, by F. A. O., 1975, Art. 2 and Sch., for "Provincial Government".

[4]Proviso omitted by the Manoeuvres, Field Firing and Artillery Practice (Amdt.) Act, 1956 (XVII of 1956), s. 2.

[5]Subs. ibid., for "three months".

3. Power exerciseable for purpose of manoeuvres.—(1) Where a notification under sub-section (1) of section 2 has been issued, such persons as are included in the military forces engaged in the manoeuvres may, within the specified limits and during the specified periods,—

(a) pass over, or encamp, construct military works of a temporary character, or execute military manoeuvre on, the area specified in the notification, and

(b) supply themselves with water from any source of water in such area:

Provided that nothing herein contained shall authorise the taking of water from any source of supply, whether belonging to a private owner or a public authority, of an amount in excess of the reasonable requirements of the military forces or of such amount as to curtail the supply ordinarily required by those entitled to the use of such water supply.

(2) The provisions of sub-section (1) shall not authorise entry on or interference with any well or tank held sacred by any religious community or any place of worship or ground attached thereto except for the legitimate purpose of offering prayers or any place or building reserved or used for the disposal of the dead, or any dwelling house or premises attached thereto or any educational institution, factory, workshop or store or any premises used for the carrying on of any trade, business or manufacture or any garden or pleasure ground, or any [1][national monument as defined in Antiquities Act, 1975 (VII of 1976).]

4. Duty of Officer Commanding to repair damage. The Officer in Command of the military forces engaged in the manoeuvres shall cause all lands used under the powers conferred by this Chapter to be restored, as soon and as far as practicable, to their previous condition.

5. Right to compensation for damage caused by manoeuvres. Where a notification issued under section 2 authorises the execution of military manoeuvres compensation shall be payable from the Defense Estimates for any damage to person or property or interference with rights or privileges arising from such manoeuvres including expenses reasonably incurred in protecting person, property, rights and privileges.

6. Method of assessing compensation.—(1) The Collector of the district in which any area utilised for the purpose of manoeuvres is situated shall depute one or more Revenue Officers to accompany the forces engaged in the manoeuvres for the purpose of determining the amount of any compensation payable under section 5.

(2) The Revenue Officer shall consider all claims for compensation under section 5 and determine, on local investigation and where possible after hearing the claimant, the amount of compensation, if any, which shall be awarded in each case ; and shall disburse on the spot to the claimant the compensation so determined as payable.

(3) Any claimant, dissatisfied with a refusal of the Revenue Officer to award him compensation or with the amount of compensation awarded to him by the Revenue Officer, may, at any time within fifteen days from the communication to him of the decision of the Revenue Officer, give notice to the Revenue Officer, of his intention to appeal against the decision.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch. II, for certain words.

(4) Where any such notice has been given, the Collector of the district shall constitute a commission consisting of himself as chairman, a person nominated by the Officer Commanding the forces engaged in the manoeuvres and two persons nominated by the District Board, and the commission shall [1][after giving to the claimant an opportunity of being heard,] decide all appeals of which notice has been given.

(5) The commission may exercise its powers notwithstanding the absence of any member of the commission, and the chairman of the commission shall have a casting vote in the case of an equal division of opinion.

(6) The decision of the commission shall be final and no suit shall lie in any Civil Court in respect of any matter decided by the commission.

(7) No fee shall be charged in connection with any claim, notice, appeal, application or document filed before the Revenue Officer, Collector or the commission under this section.

7. Offences. If, within the area and during the period specified in a notification under sub-section (1) of section 2, any person—

(a) wilfully obstructs or interferes with the execution of the manoeuvres, or

(b) without due authority enters or remains in any camp, or

(c) without due authority interferes with any flag or mark or any apparatus used for the purposes of the manoeuvres, he shall be punishable with fine which may extend to [2][one thousand] rupees.

CHAPTER II

FIELD FIRING AND ARTILLERY PRACTICE

8. Definitions. In this Chapter—

[3][(a) "classification firing" means firing practice with small arms, such as pistols, stens, rifles, light and medium machine-guns ;

(b) "classification range" means a range constructed for the execution of classification firing;

[4][(c) "field firing" includes air armament practice;

[4][(d)] "notified area" means an area defined in a notification issued under sub-section (1) of section 9.

[1]Ins. by the Manoeurvres Field Firing and Artillery Practice (Amdt.), Ordinance, 1985 (XI of 1985), s. 2.
[2]Subs. ibid. 3 for "ten".
[3]Cls. (a) and (b) ins. by the Manoeuvres, Field Firing and Artillery Practice (Amdt.) Ordinance, 1962 (LXXV of 1962), s. 2.
[4]Cls. (a) and (b) renumbered, ibid.

9. Power of Provincial Government to authorise filed firing and artillery practice.—(1) The [1][Federal Government] may, by notification[2] in the local official Gazette, define any area as an area within which [3][the carrying out] of field firing and artillery practice may be authorised.

(2) The [1][Federal Government] may, by notification in the local official Gazette, authorise the carrying out of field firing and artillery practice throughout a notified area or any specified part thereof [4][and may, if it thinks fit, specify the period or periods during which such field firing and artillery practice shall be carried out].

(3) Before any notification under sub-section (2) is issued, the [1][Federal Government] shall publish notice of its intention to issue such notification as early as possible in advance of the issue of the notification, and no such notification shall be issued until the expiry of [5][six weeks] from the date of the first publication if the notice in the local official Gazette.

(4) The notice required by sub-section (3) shall be given by publication in the local official Gazette and shall also be given throughout the notified area by publication in some newspaper circulating in and in the language commonly understood in that area and by beat of drum and by affixation in all prominent places of copies of the said notice in the language of the locality and in such other manner as may be prescribed by rules made under section 13 and shall be repeated by like publication one week as nearly as may be before the commencement of the period or of each period specified in the notification:

Provided that the fact of the said beat of drum and affixation shall be verified in writing by one headman and two other literate inhabitants of the locality and provided further that such notice by the beat of drum shall be given seven and two days as nearly as may be before the commencement of such field firing and artillery practice.

10. Powers exercisable for purposes of filed firing and artillery practice.—(1) Where a notification under sub-section (2) of section 9 has been issued, such persons as are included in the forces engaged in field firing or artillery practice may, within the notified area or specified part thereof during the specified period or periods,—

(a) carry out field firing and artillery practice with lethal missiles, and

(b) exercise, subject to the provisions of sections 3 and 4, any of the rights conferred by section 3 on forces engaged in military menoeuvres:

Provided that the provisions of sub-section (2) of section 3 shall not debar entry into, or interference with, any place specified in that sub-section, if it is situated in an area declared to be a danger zone under sub-section (2) of this section, to the extent that may be necessary to ensure the exclusion from it of persons and domestic animals:

Provided further that in the case of a dwelling house occupied by women adequate warning shall be given through a local inhabitant and entry shall be effected after such warning in the presence of two respectable inhabitants of the locality.

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[1]Subs. by F. A. O., 1975, Art. 2 and Sch., for "Provincial Government".
[2]For such Notifns., see Gazette of West Pakistan, 1956, Pt. I, pp. 407, 811-812, ibid., 1956, Ext., pp. 1037-1038, ibid., 1957, Ext., pp. 331 and 535, ibid., 1957, Ext., pp. 823, 1087-1088 and 1100, and ibid., 1958, Ext., p. 9.
[3]Subs. by Ordinance No. LXXV of 1962, s.3, for "for a specified term of years the carrying out periodically".
[4]Subs. ibid. for "during any period or periods specified in the notification".
[5]Subs. by the Manoeuvres, Field Firing and Artillery Practice (Amdt.) Act, 1956 (XVII of 1956), s. 3, for "two months".

(2) The Officer Commanding the forces engaged in any such practice may, within the notified area or specified part thereof, declare any area to be a danger zone, and thereupon the Collector shall, on application made to him by the Officer Commanding the forces engaged in the practice, prohibit the entry into and secure the removal from such danger zone of all persons and domestic animals during the times when the discharge of lethal missiles is taking place or there is danger to life or health.

[1][**10A. Danger zone adjoining classification range.**—(1) The [2][Federal Government] may, by notification in the official Gazette, declare any area adjoining a classification range as a danger zone.

(2) Where any area has been declared as a danger zone under sub-section (1), the local Station Commander,—

(a) may prohibit construction of, or addition or alteration to, any building or structure except on such conditions as he may, in writing, impose ; and

(b) shall prohibit entry into, and secure the removal from, such zone of all persons and domestic animals during the times when classification firing is taking place or there is danger to life.]

11. Compensation.—The provisions of sections 5 and 6 shall apply in the case of field firing and artillery practice [3][and classification firing] as they apply in the case of military manoeuvres;

Provided that the compensation payable under this section shall include compensation for exclusion or removal from any place declared to be a danger zone of persons or domestic animals [4][or for any loss suffered on account of the restrictions imposed under sub-section (2) of section 10A] such compensation to be disbursed at not less than the minimum rates prescribed by rules made under section 13 before the exclusion or removal is enforced, and shall also include compensation for any loss of employment or deterioration of crops resulting from any such exclusion or removal.

12. Offences.—[5][(1)] [6][Any person who within a notified area and if any period or periods are specified under sub-section (2) of section 9, then only during such period or periods]—

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(a) wilfully obstructs or interferes with the carrying out of field firing or artillery practice, or

(b) without due authority enters or remains in any camp, or

(c) without due authority enters or remains in any area declared to be a danger zone at a time when entry thereto is prohibited, or

(d) without due authority interferes with any flag or mark or target or any apparatus used for the purposes of the practice,

he shall be punishable with fine which may extend to [7][one thousand] rupees.

[1]Section 10A ins. by the Manoeuvres, Field Firing and Artillery Practice (Amdt.) Ordinance, 1962 (LXXV of 1962), s. 4.
[2]Subs. by F. A. O., 1975, Art. 2 and Sch., for "Provincial Government".
[3]Ins. by Ord. No. LXXV of 1962, s. 5.
[4]Ins. by the Manoeuvres Field Firing and Artillery Practice (Amdt.) Ordinance, 1962 (LXXV of 1962), s. 5.
[5]Re-numbered ibid., s. 6.
[6]Subs. ibid., for certain original words.
[7]Subs. by the Manoeuvres, Field Firing and Artillery Practice (Amdt.) Ordinance, 1985 (XI of 1985), s. 4, for "ten".

(2) [1][(2) Whoever wilfully contravenes the provisions of sub-section (2) of section 10A, or violates any of the conditions imposed thereunder, shall be punishable with imprisonment for a term which may extend to [2][three months, or with fine which may extend to five thousand rupees], or with both, and any expenses incurred in removing the effects of the offence may be recovered from him in the manner provided by the law for the time being in force for the recovery of fines.

CHAPTER III

GENERAL

13. Power to make rules. The [3][Federal Government] may, by notification in the local official Gazette, make rules—

(a) prescribing the manner in which the notices required by sub-section (2) of section 2 and sub-section (3) of section 9 shall be published in the areas concerned;

(b) regulating the use under this Act of land for manoeuvres or field firing and artillery practice in such manner as to secure the public against danger and to enable the manoeuvres or practice to be carried out without interference and with the minimum inconvenience to the inhabitants of the areas affected;

(c) regulating the procedure of the Revenue Officers and commissions referred to in section 6 in such manner as to secure due publicity regarding the method of making claims for compensation and preferring appeals from original awards of compensation, the expiditious settlement of claims and of appeals and the payment of compensation so far as possible direct to the claimants; and

(d) defining the principles to be followed by the Revenue Officers and commissions referred to in section 6 in assessing the amount of compensation to be awarded.

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Dated: 05.04.24

[1]Added *ibid*.
[2]Subs. by Ordinance No. XI of 1985, s. 4, for "one month, or with fine which my be extended to fifty rupees".
[3]Subs. by F. A. O., 1975, Art. 2 and Sch., for "Provincial Government".

THE DEFENCE SERVICES (INQUIRY) (SPECIAL PROVISIONS) ORDINANCE, 1969

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1. Short title and commencement
2. Definitions
3. Inquiry into the conduct of certain persons subject to service law
4. Convening of board of inquiry
5. Composition of a board of inquiry, etc.
6. Power to make rules

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THE DEFENCE SERVICES (INQUIRY) (SPECIAL PROVISIONS) ORDINANCE, 1969

[1]ORDINANCE NO. XIX OF 1969

[18th *July*, 1969]

AN

ORDINANCE

to make provision for a uniform procedure for inquiring into the conduct of a member of a Defence Service serving otherwise than in an organization or unit of his service.

WHEREAS it is expedient to make provision for a uniform procedure for inquiring into the conduct of a member of a Defence Service serving otherwise than in an organization or unit of his service and for matters ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the 25th day of March, 1969, read with the Provisional Constitution Order, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Defence Services (Inquiry) (Special Provisions) Ordinance, 1969.

(2) It shall come into force on such date as the Central Government may, by notification in the official Gazette, appoint.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "board of inquiry" means a board of inquiry convened under this Ordinance;

(b) "[2][Chief of Staff]", in relation to a person whose conduct in inquired into under this Ordinance, means the [2][Chief of Staff] of the service to which such person belongs;

(c) "commanding officer", in relation to a person subject to this Ordinance, means the head of the organization or the commanding officer for the purpose of the service law of the unit in or to which such person is for the time being serving or attached;

(d) "serving law", in relation to a person whose conduct is inquired into under this Ordinance, means the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Air Force Act, 1953 (VI of 1953), or the Pakistan Navy Ordinance, 1961 (XXXV of 1961), to which such person is subject;

(e) "unit" includes a naval ship, vessel or establishment of which there is a commanding officer for the purposes of the Pakistan Navy Ordinance, 1961 (XXXV of 1961).

[1] The Ordinance has been declared to be validly made by the competent authority, through the Validation of Laws Act No. LXIII of 1975, s.2.
[2] Subs. by Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Sch.

3. Inquiry into the conduct of certain persons subject to service law.—The conduct of a person subject to a service law shall, notwithstanding anything contained in such law, be inquired into by a board of inquiry in accordance with the provisions of this Ordinance and the rules made thereunder where the conduct to be inquired into—

(a) relates to a period when he was serving or attached, except on secondment, in or to an organization or unit other than that of the service to which he belongs, or

(b) is that of such person together with that of another person who was not, during the period to which the conduct relates, subject to the same service law.

4. Convening of board of inquiry.—Where the conduct to be inquired into under section 3 is that of the commanding officer or that of the commanding officer together with the conduct of another person, a board of inquiry shall be convened by the [1][Chief of Staff] of the service to which the commanding officer belongs and, in any other case, by the commanding officer.

5. Composition of a board of inquiry, etc.—(1) A board of inquiry shall consist of a president and such other persons and be convened in such manner, and the inquiry shall be conducted in accordance with such procedure, as may be prescribed by rules.

(2) The president of a board of inquiry shall, after the conclusion of the inquiry, submit to the authority convening the board the proceedings of the board alongwith its findings and recommendations.

(3) Upon the receipt of the proceedings of a board of inquiry submitted to him under sub-section (2), the commanding officer shall—

(a) if the inquiry relates to any matter which he is himself competent to dispose of, take the necessary action and forward a copy of the proceedings to the [1][Chief of Staff], informing him of the action taken by him;

(b) if the inquiry relates to a matter which is not of the nature mentioned in clause (a), forward the proceedings together with his recommendations, to the [1][Chief of Staff].

(4) Upon the receipt of the proceedings of a board of inquiry submitted to him under sub-section (2), or forwarded to him under clause (b) of sub-section (3), the [1][Chief of Staff] shall direct that the person to whom the proceedings relate be dealt with in the manner authorised by the service law.

(5) For the purpose of taking any action under the service law, the proceedings of a board of inquiry convened under this Ordinance may be acted upon as if they were proceedings of a board of inquiry or court of inquiry assembled under such law.

[1] Subs. by Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Sch.

6. Power to make rules.—(1) The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matter, namely:—

(a) the composition of a board of inquiry;

(b) the manner of convening a board of inquiry;

(c) the procedure for the conduct of inquiry; and

(d) such other matters as may be necessary for carrying out the purposes of this Ordinance.

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RGN Uploaded Date: 27.03.2024

[1] Subs. by Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Sch.

THE ARMED FORCES (EMERGENCY DUTIES) ACT, 1947

CONTENTS

1. Short title and extent
2. Emergency duties of Armed Forces
3. Validation of certain past commands

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THE ARMED FORCES (EMERGENCY DUTIES) ACT, 1947

ACT No. XV OF 1947

[20th March, 1947]

An Act to enable duties in connection with vital services to be imposed in an emergency on the Armed Forces of [1][Pakistan].

WHEREAS it is expedient to enable duties in connection with vital services to be imposed in an emergency on the Armed Forces of [1][Pakistan]; It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Armed Forces (Emergency Duties) Act, 1947.

[2][(2) It extends to the whole of Pakistan.]

2. Emergency duties of Armed Forces.—(1) The [3][Federal Government] may, by notification in the official Gazette, declare any specified service to be a service of vital importance to the community:

Provided that such notification shall remain in force for one month in the first instance, but may be extended, from time to time, by a like notification.

(2) Upon a declaration being made under sub-section (1) and until it is rescinded, it shall be the duty of every person subject to [4][* * *] [2][the Pakistan Army Act, 1952], [4][* * *] [2][or the Pakistan Air Force Act, 1953,] or the [5][Pakistan Navy Ordinance, 1961], to obey any command given by any superior officer in relation to employment upon or in connection with the service specified in the declaration; and every such command shall be deemed to be a lawful command within the meaning and for the purposes of the said Acts [5][or Ordinance].

3. [6][*Repealed*]

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Date: 24-07-2024

[1]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O. 1 of 1961), Art. 2 and Sch., (*with effect from the 23rd March, 1956*).
[2]Subs. and ins. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960) s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art.2 and Sch.
[4]Omitted by the Federal Laws (Revision and Declaration), Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.
[5]Subs. and added by the Repealing and Amending Ordinance, 1965 (X of 1965), s. 3 and 2nd Sch. (shall be deemed to have substituted and added on the first day of March, 1962).
[6]Rep. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 3 and Second Schedule.